DAILY READER

PARSHAT BERESHIT

When is a minority worth worrying about? — Bekhorot 20, the beehive's shadow, and Solomon's asking heart

Thursday, 8 October 2026 · Aliyah 5/7 (Genesis 4:19-4:22) · Daf Bekhorot 20

FROM THE LINKED SOURCES

A milking cow, a gentile, and the minority that tips the scale

Jev score: 0.54 — Jev-scored: does the linked source illuminate the daf non-obviously? (jev-1.13.0)

The Terumat HaDeshen (Part I, 271) answers a case that could have been lifted straight out of today's baraita: a Jew bought a milking cow from a gentile, already several months pregnant, without asking whether she had ever calved. The gentile volunteered only that she was pregnant and warned them not to approach her near calving — 'for that is her way, to kick mightily at that time, as she already did with me when she calved.' Can the buyer rely on that kicked-over bucket of history to say she is no first-calver?

The responsum replays the daf's own majority-versus-minority machinery: Rabbenu Tam (via the Ashiri) holds that milk does not exempt — even though most animals lactate only after calving, 'join the minority to the presumption that she never calved' (מיעוטא לחזקה סמוך) and it becomes an even doubt. But the Ashiri himself, Tosafot in Yevamot, the Rambam and the Semag rule that milk does exempt. The gentile's volunteered anecdote is the human footnote to the daf's abstract calculus.

Also scored: Responsa Maharashdam YD 45 (0.47, uncertain-status poultry via sefeik sefeika), Shoel uMeshiv I 1:245:3 (0.40, on חזקה ורוב), the Bekhorot introduction (0.43).

PARSHA · BERESHIT

Reading the body's signs of birth

Jev score: 0.40 — Jev-scored: groundedness of the proposed connection in the daf's and the parsha's actual texts (jev-1.13.0)

The best of a thin field. Today's daf catalogs the physical signs by which a birth makes itself known — and its baraita explicitly includes the woman: 'the indication in a woman is a fetal sac or an afterbirth.' Bereshit 3:16 is where the parsha names the same biology in its own register: childbirth made into travail. Halakhah reads the legible trace of birth; the parsha narrates its cost. It is a genuine shared subject, but the connection is one of subject matter, not argument — neither text illuminates the other's reasoning.

Rejected by Jev: Abel's firstborns of the flock (0.36), 'part of the day is like an entire day' vs evening-and-morning (0.37), concern for the unseen vs hidden Adam and Cain (0.35), ten for the tithe vs seven sanctified days (0.35), premature birth vs day-bound creation (0.09).

NEWS CHECK

Making the invisible legible

Jev score: 0.38 — Jev-scored: does the news story resonate meaningfully with the daf's themes, or is the link forced? (jev-1.13.0)

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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None of this week's stories resonates strongly with the daf — the highest score is 0.38, and honesty requires saying so. The least forced link: the 2026 Nobel Prize in Medicine went to optogenetics, a technique that makes invisible neural activity legible by light. That is the daf's own project in miniature — finding the physical sign (discharge, afterbirth, milk) by which an unseen birth becomes legally knowable. But the parallel is poetic, not analytical; the prize tells us nothing about concern for minorities. The Iran war's diplomacy of un-materialized threats (0.24) and the Brazil runoff's contested majorities (0.19) were both judged forced.

MAAGARIM · MI'UT

מיעוט: from the halakhic minority to the political one

The daf's load-bearing word is מיעוט — the minority. Rabbi Yishmael (following Rabbi Meir) holds חוששין למיעוטא: one must be concerned for the minority. The daf then imports Yevamot 119a's famous calculus — most pregnant women give birth, a minority miscarry; of those who give birth, half bear males — to show how minorities combine and cancel. The minority is never just a number here; it is a legal actor, something the law must decide whether to worry about.

In rabbinic Hebrew מיעוט stays a quantifier — a minority of the congregation, a minority of cases. But modern Hebrew gave it a political life: מיעוט is a national or ethnic minority, and ממשלת מיעוט — a minority government — is a headline phrase. The National Library's archive holds a 1999-era Likud poster titled 'ממשלת מיעוט,' attacking Ehud Barak's government as leaning on Arab votes. The arc: what the daf treats as a probability to be weighed, modern Hebrew treats as an identity to be courted or feared. The word traveled from the courtroom to the campaign.

Maagarim live lookup blocked this morning (Cloudflare challenge in the browser session; the one-click rule closed the task) — the sweep was partial and the narrative is grounded in the fetched Sefaria texts instead. Word data: מפעל המילון ההיסטורי של האקדמיה ללשון העברית — the Historical Dictionary Project of the Academy of the Hebrew Language.

929 · I KINGS 3 (CH. 290)

Ask for a hearing heart

Chapters 1–2 of Kings were the succession — David's death, Adonijah's bid, Solomon's consolidation ending in Shimei's execution. Chapter 3 opens the reign proper, and it opens in three movements: the alliance (3:1), the theophany (3:5–15), and the demonstration (3:16–28). The whole chapter is about how wisdom arrives and how it proves itself.

The first movement is the most awkward: 'ויתחתן שלמה את פרעה' — Solomon marries Pharaoh's daughter. Rashi, following the midrash, dates it with precision: all the time

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Shimei his teacher was alive, Solomon did not marry her, 'מכאן אמרו: לעולם ידור אדם במקום רבו' — from here they said: a man should always dwell where his teacher dwells. Ralbag is blunter about the legal residue: the marriage came after her conversion, but 'מדרכי התורה היה בזה הענין יציאה קצת' — there was in this matter a slight departure from the Torah's ways, since Egyptians enter the congregation only in the third generation. Malbim reads it as statecraft: having secured the kingdom within, Solomon secured it against the surrounding kings by alliance with a great power. Three commentators, three registers — aggadah, halakhah, politics — on a single verse.

Then Gibeon. אלקים appears to Solomon in a dream: 'שאל מה אתן לך' — ask what I shall give you. Solomon asks for 'לב שמע לשפט את עמך' — a hearing heart to judge Your people. Rashi hears the weight in עמך הכבד: a people is 'heavy' because they have many affairs and come to judgment, and he adds the terrifying corollary — if a judge takes from one gentile litigant and gives to another wrongly, he is not punished; but for Israel, 'הריני נענש עליו עונש נפשות' — I am punished with the punishment of souls. Metzudat David puts it plainly: it is impossible to judge such a people from the wisdom of one's own heart without help from heaven. The request itself is the first act of wisdom: knowing that judgment needs more than intellect.

The answer is famous — 'לב חכם ונבון,' a wise and discerning heart — but the commentators refuse to let it stay a slogan. Radak cites the sages: חכם is one who retains his learning ('למודו'), נבון is one who understands one thing from another. And 'אשר כמוך לא היה לפניך המקיים את' — Radak records two readings: even Moses did not equal him in חכמת הטבע (though in divine wisdom Moses was greater), or simply: among kings. Malbim builds the gift's architecture verse by verse: the wisdom to hear judgment that he asked for, plus universal wisdom — natural, political, divine — that he did not ask for, and with it wealth and honor as wisdom's necessary accompaniments ('גם עשר גם כבוד'), while long life alone is conditional: 'אם תלך בדרכי.' Wisdom is a package; longevity is a covenant.

The third movement is the proof. Radak on 'אז תבאנה' (3:16) insists on the אז: this case came to Solomon as he returned from Gibeon to Jerusalem — the first display of the gift, the receipt for the dream. Ralbag demythologizes the two women: they were probably innkeepers, like Rahab the זונה, and Solomon's gambit was to frighten them so that the truth would surface from their own mouths — 'אשר תחמול יותר על הבן החי יתבאר בלי ספק שהיא אמו' — the one who has more compassion on the living child is unmistakably the mother.

The judgment's literary pivot is the order of the women's words. Malbim on 3:27: Solomon 'להכריע מתוך סדר דבריהם מי החפץ בילד ומי לא' — decided from the order of their words who wanted the child and who did not. The true mother says 'תנו לה את הילוד החי' — give her the living child — and Rashi adds the midrashic seal: a בת קול emerged and said 'היא אמו.' Radak and Metzudat David agree on the plain-sense reading: 'הואיל ומרחמת עליו' — because she had compassion on him.

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Notice the thread the chapter sews: לב — heart — appears in the request (לב שמע), in the grant (לב חכם ונבון), and the whole episode is framed by שמע, hearing. Solomon asks to hear, is given a hearing heart, and the proof is that he hears which voice loves the child. The dream is given in sleep; the wisdom is proven awake. The same Gibeon theophany is told in Chronicles (2 Chr 1), where the emphasis falls on the place — the great high place — rather than the night-dream intimacy Kings preserves.

MISHNAH YOMI · OHOLOT 9:3-4

The beehive in the doorway

Oholot 9:3

בַּמֶּה דְּבָרִים אֲמוּרִים, בִּזְמַן שֶׁהִיא כְּלִי מְחֻלְחֶלֶת. הָיְתָה פְחוּתָה וּפְקוּקָה בְקַשׁ אוֹ אֲפוּצָה, אֵיזוֹ הִיא אֲפוּצָה, כֹּל שֶׁאֵין לָהּ טֶפַח מִמָּקוֹם אֶחָד, כְּזַיִת מִן הַמֵּת נָתוּן תַּחְתֶּיהָ, כְּנֶגְדּוֹ עַד הַתְּהוֹם טָמֵא. עַל גַּבָּהּ, כְּנֶגְדּוֹ עַד הָרָקִיעַ טָמֵא. בַּבַּיִת, אֵין טָמֵא אֶלָּא הַבַּיִת. בְּתוֹכָהּ, אֵין טָמֵא אֶלָּא תוֹכָהּ:

When do these rules apply? When the hive is a vessel and it is loosely placed in the door. If it is defective, although it may be stopped up with straw, or it is stuck to the side of the door — what is 'stuck'? Anything which has no opening of one handbreadth — then, if an olive-sized portion of a corpse is placed below it, everything directly below the portion to the depths becomes unclean; if placed above the hive, everything directly above to the sky becomes unclean. If the uncleanness is in the house, nothing is unclean except the house. If it is in the hive, nothing is unclean except what is within.

Rambam: מחולחלת means hollow inside an intact vessel — like the Targum's rendering of the altar's 'hollow boards' (נבוב לוחות, Ex. 27:8). But if the hive is defective and its opening stopped with straw, or it is stuck fast — whole yet packed with straw and the like so that no handbreadth of space remains — it is then like a piece of the ground: impurity beneath it or within it is as if buried in the earth, and it does not transmit impurity to the house.

Mishnat Eretz Yisrael: The Mishnat Eretz Yisrael commentary works out the realia: מחולחלת is the opposite of אפוצה — the Tosifta (10:5) defines it as a hive with a handbreadth of clearance on its sides. 'Stuffed with straw' (פקוקה בקש) likely means a hive made not of straw but of another material — thick clay (חלמא) or dung — whose defect was plugged with straw. Albeck traced מחולחלת to a Syriac root.

Oholot 9:4

הָיְתָה גְבוֹהָה מִן הָאָרֶץ טֶפַח, טֻמְאָה תַּחְתֶּיהָ אוֹ בַבַּיִת, תַּחְתֶּיהָ וְהַבַּיִת טְמֵאִין, תּוֹכָהּ וְגַבָּהּ טָהוֹר. בְּתוֹכָהּ, אֵין טָמֵא אֶלָּא תוֹכָהּ. עַל גַּבָּהּ, כְּנֶגְדּוֹ עַד הָרָקִיעַ טָמֵא:

In the case of such a hive being placed one handbreadth high off the ground: if there is uncleanness below it or in the house, the space below it and the house become unclean, but the space above and within remains clean. If the uncleanness is in the hive, nothing is unclean except what is within; if above the hive, what is directly above up to the sky becomes unclean.

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Rambam: This is the law of a plugged or stuck hive that is neither a vessel nor a tent: when it overhangs the impurity it transmits impurity to the house, but if the impurity is on top of it the house is not defiled — for the impurity is outside and the hive is not hollow. We reckon the impurity as though it reached beneath the edge of the tent; and impurity on top of it is like impurity on the ground's surface — hence 'directly above it up to the sky is unclean, and nothing else.'

Mishnat Eretz Yisrael: The commentary's distinctive move here is philological rather than archaeological: it sets the two mishnayot against each other to show that 9:4's hive — raised a handbreadth off the ground — functions as a tent (אוהל) for what is beneath it while remaining a mere surface for what is above it, the hinge being the handbreadth that makes an overhang into a dwelling.

RAMBAM YOMI · HILCHOT YIBBUM VACHALITZAH 4

The choreography of release

Halachah 1

כֵּיצַד מִצְוַת חֲלִיצָה. הַיְבָמָה הוֹלֶכֶת אַחַר הַיָּבָם בְּמָקוֹם שֶׁהוּא שָׁם וּבָאָה לַדַּיָּנִין. וְהֵן קוֹרְאִין לוֹ וְנוֹתְנִין לוֹ עֵצָה הַהוֹגֶנֶת לוֹ וְלָהּ. אִם עֵצָה טוֹבָה לְיַבֵּם יוֹעֲצִין אוֹתוֹ לְיַבֵּם. וְאִם עֵצָה טוֹבָה לַחֲלֹץ כְּגוֹן שֶׁהָיְתָה הִיא יְלֹדָה וְהוּא זָקֵן אוֹ הִיא זְקֵנָה וְהוּא יֶלֶד יוֹעֲצִין אוֹתוֹ לַחֲלֹץ:

What does the mitzvah of chalitzah entail? The yevamah goes to the yavam's place of residence1 Sanhedrin 31b derives this from Deuteronomy 25:8: "And the elders of his city shall call him..." - i.e., "his city" and not her city. and approaches the judges. They call the yavam and give him advice that is appropriate for him and for her.If the appropriate advice is for them to perform yibbum, they advise him2 Our text is based on authoritative manuscripts and early printings of the Mishneh Torah. This version appears appropriate, for the decision to perform yibbum or chalitzah is that of the remaining brother alone. to perform yibbum.3 This follows the Rambam's perspective (Chapter 1, Halachah 2) that, in general, it is preferable to perform yibbum rather than chalitzah. Even so, the judges should take counsel and see whether the couple appear appropriate for each other. If the appropriate advice is for them to perform chalitzah - e.g., she is young and he is older, or she is older and he is young4 See Hilchot Issurei Bi'ah 21:26. - they advise him to perform chalitzah.

Halachah 2

וּצְרִיכִין הַדַּיָּנִין לִקְבֹּעַ מָקוֹם שֶׁיֵּשְׁבוּ בּוֹ וְאַחַר כָּךְ תַּחֲלֹץ שָׁם בִּפְנֵיהֶם שֶׁנֶּאֱמַר (דברים כה ז) "וְעָלְתָה יְבִמְתּוֹ הַשַּׁעְרָה אֶל הַזְּקֵנִים" וְגוֹ'. לֹא נוֹעֲדוּ וְלֹא קָבְעוּ מָקוֹם אֶלָּא נִקְרוּ נִקְרָה וְנִקְרֵאת הִיא וְהוּא לִפְנֵיהֶן וְחָלְצוּ חֲלִיצָתָהּ כְּשֵׁרָה:

The judges should first establish the place where they will hold session,5 Darchei Moshe (Even HaEzer 169) states that establishing a place for the chalitzah beforehand serves to publicize the matter. and then she should perform chalitzah there in their presence, as

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[Deuteronomy 25:7] states: "And his yevamah shall ascend to the gate, [where] the elders [hold court]...."If [the judges] did not speak about the matter, nor did they establish a place, and [the yevamah] and [the yavam] chanced upon them and performed chalitzah, the chalitzah is acceptable.

Halachah 3

וּמְלַמְּדִין אוֹתָהּ וְאֶת הַיָּבָם לִקְרוֹת עַד שֶׁהוּא וְהִיא יִהְיוּ רְגִילִין וְתִהְיֶה יְכוֹלָה לִקְרוֹת (דברים כה ז) "לֹא אָבָה" בִּנְשִׁימָה אַחַת וְאַחַר כָּךְ תֹּאמַר יַבְמִי. כְּדֵי שֶׁלֹּא יִהְיֶה מַשְׁמַע דְּבָרֶיהָ אָבָה יַבְמִי:

Both [the yevamah] and the yavam should be taught to read until they are familiar [with the words they must recite].6 For, as explained in the halachot to follow, both the yavam and the yevamah must recite certain phrases within the chalitzah ceremony.The yevamah should be trained to say lo avah in one breath, [pause,] and say yabmi, so that her words cannot be interpreted to mean avah yabmi.7 Lo avah yabmi means "My yavam did not desire" [Deuteronomy 25:7]. Improper emphasis could, however, cause the statement to be interpreted as: "No, my yavam desired."

Halachah 4

וּמֵאַחַר שֶׁתִּהְיֶה רְגִילָה לִקְרוֹת אַף עַל פִּי שֶׁלֹּא קָרְאָה בִּנְשִׁימָה אַחַת אֵין מַקְפִּידִין עַל זֶה. אֲבָל אִם אֵינָהּ יְכוֹלָה מַרְגִּילִין אוֹתָהּ עַד שֶׁתְּדַע:

If the yevamah is familiar [with the phrase] she must recite, we are not fastidious about her reading [the above phrase] in one breath. If, however, she is unable [to read], we should train her until she does so [properly].

Halachah 5

וְהַחֲלִיצָה בַּיּוֹם וְלֹא בַּלַּיְלָה. וּבִפְנֵי שְׁלֹשָׁה שֶׁיּוֹדְעִין לְהַקְרוֹת. וְאִם אֶחָד מִן הַשְּׁלֹשָׁה גֵּר פָּסוּל. וַאֲפִלּוּ הָיָה אָבִיו גֵּר וְאִמּוֹ יִשְׂרְאֵלִית לֹא תַּחֲלֹץ עַד שֶׁיִּהְיֶה אָבִיו וְאִמּוֹ מִיִּשְׂרָאֵל. וּמְצָוָתָהּ בַּחֲמִשָּׁה כְּדֵי לְפַרְסֵם הַדָּבָר. וְאוֹתָן הַשְּׁנַיִם אֲפִלּוּ הָיוּ עַמֵּי הָאָרֶץ:

Chalitzah must be performed during the day and not at night.8 For chalitzah is considered as a "judgment," and judgments may not be made at night (Yevamot 104a). (See also Halachah 16.) [The rite] must be performed in the presence of [at least] three individuals9 I.e., there is no need for these individuals to be formally ordained as judges. Nevertheless, as the Rambam states in his Commentary on the Mishnah (Yevamot 12:1), and as the Shulchan Aruch (Even HaEzer 169:1) states, at the outset it is proper for three ordained judges to preside over the ceremony. who know how to read.10 For they must read the phrases for the yavam and the yevamah, as will be stated later in the text. See Halachah 15, which states that this requirement is a factor only a priori.If one of the three individuals is a convert, [the chalitzah] is unacceptable. Even a man whose father is a convert, and his

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mother a native-born Jewess,11 The Ramah (Even HaEzer 169:2) rules that a judge whose father is a native-born Jew and his mother is a convert may serve in this capacity. should not participate in the chalitzah ceremony. [Instead, it is necessary,] that both his father and his mother be native-born Jews.12 Deuteronomy 25:10 states: "And his name will be called in Israel...." This phrase implies that only those of Jewish ancestry can serve in this capacity.It is a mitzvah for five men [to observe the rite], so that the matter will be publicized.13 This serves two purposes. It is of benefit to the woman, for men will become aware that she is eligible to remarry. It also will make known the fact that she is forbidden to a priest (Rashi, Yevamot 101b). The other two may even be common people.14 Who do not know how to read. For their presence is only for the sake of making the matter known.

Halachah 6

כֵּיצַד חוֹלְצִין. מְבִיאִין לוֹ מִנְעָל שֶׁל עוֹר שֶׁיֵּשׁ לוֹ עָקֵב וְאֵינוֹ תָּפוּר בְּפִשְׁתָּן וְלוֹבְשׁוֹ בִּימִין וְקוֹשֵׁר רְצוּעוֹתָיו עַל רַגְלוֹ. וְעוֹמֵד הוּא וְהִיא בִּפְנֵי בֵּית דִּין וּמַקְרִין לַיְבָמָה בִּלְשׁוֹן הַקֹּדֶשׁ (דברים כה ז) "מֵאֵן יְבָמִי" וְגוֹ'. וְאַחַר כָּךְ מַקְרִין לַיָּבָם (דברים כה ח) "לֹא חָפַצְתִּי לְקַחְתָּהּ". וְנוֹעֵץ רַגְלוֹ בָּאָרֶץ וְהִיא יוֹשֶׁבֶת וּפוֹשֶׁטֶת יָדָהּ בִּפְנֵי בֵּית דִּין וּמַתֶּרֶת רְצוּעוֹת הַמִּנְעָל מֵעַל רַגְלוֹ וְחוֹלֶצֶת הַמִּנְעָל וּמַשְׁלֶכֶת אוֹתוֹ לָאָרֶץ וּמְשַׁשְּׁמֵט רֹב הֶעָקֵב הֶתְּרָה הַיְבָמָה לְזָר:

How is the rite of chalitzah performed? A leather15 The entire shoe (according to the Ramah, Even HaEzer 169:15, even its straps must be made of leather). shoe16 See Yevamot 102a and the Shulchan Aruch (ibid.:16), which discuss whether a sandal or a shoe should be used. with a heel, that is not sewn with linen threads,17 There are certain opinions that allow a shoe that is sewn with linen, but both the Shulchan Aruch and the Ramah (ibid. 169:15) follow the Rambam's view. is brought to [the yavam].18 At the outset, the shoe should belong to the yavam. (See the Shulchan Aruch (ibid.:14). He places it on his right foot and ties its straps around his foot.19 The yavam should not be wearing socks, and no mud should be stuck to his feet (Shulchan Aruch, ibid.:26).Both [the yavam] and [the yevamah] stand before the court.20 The Sifre derives this concept from Deuteronomy 25:8, which states: "And he shall stand and say." After the fact, however, if the chalitzah was performed while the yavam and the yevamah were seated, it is acceptable (Ramah, ibid. 169:12). The phrase [Deuteronomy 25:7], Me'ein yevami.... ("My yavam refuses....") is read in Hebrew for the yevamah to repeat. Afterwards, the phrase [ibid.:8], Lo chafatzti lekachtah ("I do not desire to take her") is read for the yavam to repeat.He then presses his foot to the ground.21 The Tur states in the name of Rabbenu Yitzchak Alfasi that if the yavam does not press his foot to the ground, the chalitzah is not acceptable. The Shulchan Aruch (ibid.:32) quotes this as a minority opinion. She sits [on the ground],22 The Shulchan Aruch (ibid.:30) differs and follows the opinion of the Tur, who states that the chalitzah should be performed while the woman is standing and bends to untie and remove the yavam's shoe. extends her hand before the court, loosens the straps of his shoe, removes it,23 The Shulchan Aruch (ibid.)

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

states that the yevamah should untie and remove the shoe with her right hand alone. The Ramah states, however, that, after the fact, the chalitzah is acceptable if she uses her left hand. and throws it to the ground.24 The Tur and others question the rationale for this act. Significantly, the commentaries cite the Rambam's source as the Zohar, Volume III, page 180a, which states that the removal of the shoe signifies the cutting of the woman's connection with her deceased husband. At the moment she removes the majority of the heel [of the shoe from his foot], she becomes free to marry another man.

Halachah 7

וְאַחַר כָּךְ עוֹמֶדֶת וְיוֹרֶקֶת בְּאָרֶץ כְּנֶגֶד פָּנָיו רַק הַנִּרְאֶה לַדַּיָּנִין. שְׁמִצוֹת חֲלִיצָה שֶׁיִּהְיוּ שְׁנֵיהֶן עוֹמְדִין בִּשְׁעַת קְרִיאָה וּבִשְׁעַת רְקִיקָה וּצְרִיכִין הַדַּיָּנִין לִרְאוֹת הָרַק הַיּוֹצֵא מִפִּיהָ. וְאַחַר כָּךְ מַקְרִין לָהּ (דברים כה ט) "כָּכָה יֵעָשֶׂה לָאִישׁ אֲשֶׁר לֹא יִבְנֶה אֶת בֵּית אָחִיו" (דברים כה י) "וְנִקְרָא שְׁמוֹ בְּיִשְׂרָאֵל בֵּית חֲלוּץ הַנָּעַל":

Afterwards, she stands and spits on the earth before his face,25 Although the literal meaning of Deuteronomy 25:9 is "she spits in his face," Yevamot 106b explains that in a halachic context, the phrase should be interpreted as above. in a manner that the spittle can be seen by the judges. For the mitzvah of chalitzah requires that both [the yevamah and the yavam] should stand when they recite [the phrases they must say] and when she spits. The judges must see the spittle that emerges from her mouth.26 For Deuteronomy, ibid., states that she must spit "before the eyes of the elders."Afterwards, the phrase Kachah ye'aseh..., "This is what should be done to a man who does not build his brother's household. And his [family] shall be called within Israel 'the household of the one whose shoe was removed' [Deuteronomy 25:9-10] is read for the yevamah to repeat.

Halachah 8

הַכֹּל בִּלְשׁוֹן הַקֹּדֶשׁ שֶׁנֶּאֱמַר (דברים כה ט) "כָּכָה" בַּלָּשׁוֹן הַזֶּה. וְכָל הַיּוֹשְׁבִין שָׁם עוֹנִים אַחֲרֶיהָ (דברים כה י) "חֲלוּץ הַנָּעַל" שָׁלֹשׁ פְּעָמִים. וְצָרִיךְ שֶׁתִּתְכַּוֵּן הַיְבָמָה שֶׁתַּחֲלֹץ לוֹ וְיִתְכַּוֵּן הוּא שֶׁיַּחֲלֹץ לָהּ. וְיַעֲשׂוּ מַעֲשִׂים אֵלּוּ לִשְׁמָן. וְהַסּוֹמֵא אֵינוֹ חוֹלֵץ שֶׁנֶּאֱמַר (דברים כה ט) "וְיָרְקָה בְּפָנָיו" וְאֵין זֶה רוֹאֶה הָרַק:

All [the statements mentioned] above should be made in Hebrew. This is derived from the phrase "This is what" [in the above verse, which is interpreted] to mean "with these words."All those seated27 The Mishnah (Yevamot 12:6) and the Shulchan Aruch (Even HaEzer 169:42) mention "those standing there." in attendance recite chalutz hana'al, "the one whose shoe was removed," three times.28 We find a threefold repetition of a phrase employed by the Sages as a means of publicizing the matter. See Hilchot Temidim UMusafim 7:11.The Halachot Gedolot interprets the threefold repetition as a reprimand. It is as if God told him: "Wicked man! With your body, you could have performed a mitzvah,

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PARSHAT BERESHIT

When is a minority worth worrying about? — Bekhorot 20, the beehive's shadow, and Solomon's asking heart

Thursday, 8 October 2026 · Aliyah 5/7 (Genesis 4:19-4:22) · Daf Bekhorot 20

and you refused.... The judges will proclaim: 'The one whose shoe was removed' like a mourner. 'The one whose shoe was removed' like one placed under a ban of ostracism. 'The one whose shoe was removed' like a person who rebels against [God's] commandments."The yevamah must remove his shoe with willful intent, and [the yavam] must have the intent that he performs this rite on her behalf. They must perform these acts with the intent of enabling her to marry other men.29 Our translation of lishmah is based on the Shulchan Aruch (Even HaEzer 169:44).A blind man30 I.e., one who is blind in both eyes (Hagahot Maimoniot, Ramah, loc. cit.:48). should not perform chalitzah,31 As reflected by Halachah 15, this is just an a priori ruling. After the fact, the chalitzah is acceptable.The Ra'avad states that this law applies only when there is another brother who can perform chalitzah. If there is not another brother, the blind man should perform this ritual on the woman's behalf. Although the Maggid Mishneh contests the Ra'avad's decision, the Beit Shmuel 169:48 upholds it. for [Deuteronomy 25:9] states: "[She] shall spit before his face," and he cannot see her spittle.

Halachah 9

נִמְצָא סֵדֶר הַחֲלִיצָה כָּךְ הוּא. קוֹרָאָה הִיא תְּחִלָּה (דברים כה ז) "מֵאֵן יְבָמִי לְהָקִים לְאָחִיו שֵׁם בְּיִשְׂרָאֵל לֹא אָבָה יַבְמִי". וְאַחַר כָּךְ הוּא אוֹמֵר (דברים כה ח) "לֹא חָפַצְתִּי לְקַחְתָּהּ". וְאַחַר כָּךְ תַּחֲלֹץ. וְאַחַר כָּךְ תָּרֹק. וְאַחַר כָּךְ תִּקְרָא (דברים כה ט) "כָּכָה יֵעָשֶׂה לָאִישׁ אֲשֶׁר לֹא יִבְנֶה אֶת בֵּית אָחִיו" (דברים כה י) "וְנִקְרָא שְׁמוֹ בְּיִשְׂרָאֵל בֵּית חֲלוּץ הַנָּעַל":

Thus, the order of chalitzah should be as follows: First she recites: "My yavam refuses to perpetuate his brother's name within Israel. My yavam did not desire [to marry me].Afterwards, [the yavam] says: "I do not desire to take her." At which point, she removes his shoe and then spits. Afterwards, she recites: "This is what should be done to a man who does not build his brother's household. And his [family] shall be called within Israel 'the household of the one whose shoe was removed.'

Halachah 10

וְאֵין הַסֵּדֶר מְעַכֵּב אֶלָּא אִם לֹא קָרְאָה בַּתְּחִלָּה לֹא הִיא וְלֹא הוּא אוֹ שֶׁרָקְקָה וְאַחַר כָּךְ חָלְצָה אוֹ שֶׁקָּרְאָה וְאַחַר כָּךְ רָקְקָה חֲלִיצָתָהּ כְּשֵׁרָה:

This order is not, however, an absolute requirement. Instead, even though neither [the yevamah], nor [the yavam] recited [the required phrases], she spit and then removed his shoe, or she recited [the phrases] and then spit, the chalitzah is acceptable.

Halachah 11

וְלָמָּה לֹא תַּחֲזֹר וְתָרֹק עַל הַסֵּדֶר שֶׁמָּא יֹאמְרוּ רְקִיקָה לְבַדָּהּ אֵינָהּ כְּלוּם וְאֵינָהּ פּוֹסֶלֶת מִן הָאַחִין:

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PARSHAT BERESHIT

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Why, [in the above instance,] should she not spit [again], [so that all the required activities] will be performed in the proper order? Lest people [mistakenly] think that spitting alone is of no consequence, and [they err and think] that it does not prevent [the yavam's] other brothers [from performing yibbum with the yevamah].32 See Halachah 14.

Halachah 12

חָלְצָה בִּלְבַד וְלֹא קָרְאָה וְלֹא רָקְקָה חֲלִיצָתָהּ כְּשֵׁרָה. וְאֵין צָרִיךְ לוֹמַר שֶׁחָלְצָה וְקָרְאָה וְלֹא רָקְקָה אוֹ שֶׁחָלְצָה וְרָקְקָה וְלֹא קָרְאָה שֶׁחֲלִיצָתָהּ כְּשֵׁרָה:

[Even if] she merely removed his shoe, did not recite [the required phrases], and did not spit, the chalitzah is acceptable. Needless to say, if she removed his shoe and recited the required phrases, but did not spit, or if she removed his shoe and spat, but did not recite the required phrases, the chalitzah is acceptable.33 Rabbi Eliezer maintains that the phrase (Deuteronomy 25:9 , kachah ye'aseh, "this is what should be done," implies that all the deeds and the order required by the Torah is imperative for the chalitzah to be effected. The final opinion of Rabbi Akiva does not, however, accept this view (Yevamot 104b).

Halachah 13

בַּמֶּה דְּבָרִים אֲמוּרִים כְּשֶׁהָיוּ יְכוֹלִין לְדַבֵּר שֶׁהֲרֵי הֵן רְאוּיִין לִקְרוֹת. אֲבָל אִלֶּמֶת אוֹ אִלֵּם אֵינָן חוֹלְצִין וְאִם חָלְצוּ חֲלִיצָתָן פְּסוּלָה. וְאֵינָן כְּחֵרֵשׁ וְחֵרֶשֶׁת שֶׁחָלְצוּ שֶׁלֹּא עָשׂוּ כְּלוּם. לְפִי שֶׁהַחֵרֵשׁ אוֹ הַחֵרֶשֶׁת אֵינָן בְּנֵי דַּעַת:

When does the above apply? When [the yevamah and the yavam] are able to speak, for then they are able to recite [the appropriate phrases].34 This reflects a Talmudic principle frequently applied and stated explicitly with regard to the meal offering brought in the Temple. These offerings consist of flour and oil. The flour and the oil should be mixed together. Nevertheless, as long as the quantity of flour is not too large to be mixed with the oil, the offering is acceptable, even when in actual fact the two were not mixed together (Rashi, Yevamot 104b). When, however, [the yevamah] or [the yavam] is dumb, they may not perform chalitzah, and if they do perform chalitzah, the chalitzah is not acceptable.35 The difference between a chalitzah that is pasul, "not acceptable," and a chalitzah that is not significant at all is discussed in Halachah 26.[Their deeds are, nevertheless, effective to a certain degree.] They are not comparable to a chalitzah performed by [a yevamah] or [a yavam] who was a deaf-mute, in which case their deeds are of no consequence whatsoever,36 As mentioned in the Maggid Mishneh, the Rambam's view is dependent on the Tosefta, while on the surface, the Mishnah (Yevamot 104b) appears to accept the position that a chalitzah performed by a deaf-mute is unacceptable, but not of no consequence. The Maggid Mishneh attempts to justify the Rambam's ruling, but notes that the Ramban and the Rashba follow the latter view. [Significantly, in his Commentary on the Mishnah (Yevamot 12:4), the Rambam also appears to favor the latter view, and his decision

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in the Mishneh Torah represents a reversal of his thinking.] The Shulchan Aruch (Even HaEzer 169:44) mentions both views without appearing to favor either one. for a deaf-mute is not of sufficient mental capacity to take responsibility for his [or her] actions.

Halachah 14

רָקְקָה בְלִבַּד שֶׁלֹּא חָלְצָה וְלֹא קָרְאָה. אוֹ שֶׁרָקְקָה וְקָרְאָה וְלֹא חָלְצָה הֲרֵי זוֹ כַּחֲלִיצָה פְּסוּלָה. קָרְאָה הִיא וְהוּא וְלֹא חָלְצָה וְלֹא רָקְקָה לֹא עָשָׂה כְּלוּם שֶׁנֶּאֱמַר (דברים כה ט) "כָּכָה יֵעָשֶׂה לָאִישׁ". שֶׁהַמַּעֲשֶׂה שֶׁהוּא הַחֲלִיצָה וְהָרְקִיקָה הוּא שֶׁמּוֹעִיל אֲבָל הַקְּרִיאָה אֵינָהּ מְעַכֶּבֶת וְאֵינָהּ מוֹעֶלֶת:

If [the yevamah] only spits, without removing [the yavam's shoe] or reciting [the appropriate phrases], or spits and recites [the appropriate phrases], without removing [the yavam's shoe], it is as if she has performed an unacceptable chalitzah.37 As mentioned in Halachah 26, the chalitzah does not permit the yevamah to remarry, but prevents her from performing yibbum.There is a difference of opinion among the commentaries whether the effectiveness of spitting is a Scriptural law or a Rabbinic institution. The Maggid Mishneh states that it appears that the Rambam is deriving the concept from the exegesis of a verse, but this is not accepted by all authorities.If both [the yevamah and the yavam] recite [the appropriate phrases], but the yevamah does not remove [the yavam's shoe] or spit, they have not accomplished anything.38 Yibbum is permitted, and she is not disqualified from marrying into the priesthood. [This is implied by the verse:] "This is what should be done to a man" - i.e., a deed removing the shoe or spitting has an effect. The recitation of the verses, by contrast, is not an absolute requirement, nor does it have any effect [on its own].39 Yevamot 105a distinguishes between spitting and the recitation of the verses as follows: Spitting should be carried out after the removal of the yavam's shoe. Therefore, if it is performed before the removal of the shoe, it is considered a distinct act. The recitation of the verses, by contrast, should be performed before the removal of the shoe. An observer will thus realize that the fundamental aspect of the ceremony is still to be performed.

Halachah 15

חָלְצָה וְרָקְקָה וְקָרְאָה וְהֵם יוֹשְׁבִין אוֹ מֻטִּין עַל צִדֵּיהֶן. אוֹ שֶׁהָיָה שְׁרוּךְ הַנַּעַל קָשׁוּר עַל שׁוֹקוֹ מִן הָאַרְכֻּבָּה וּלְמַטָּה. אוֹ שֶׁחָלְצָה בִּפְנֵי שְׁלֹשָׁה עַמֵּי הָאָרֶץ שֶׁאֵינָן יוֹדְעִין לְהַקְרוֹת. וְכֵן הַסּוּמָא שֶׁחָלַץ. חֲלִיצָתוֹ כְּשֵׁרָה:

If [the yevamah] removes [the yavam's shoe], spits and recites [the appropriate phrases] while they are sitting, or lying on their sides,40 Instead of the two standing when she spits and they recite the verses, and the yavam's standing, as mentioned in Halachot 6 and 7. if the straps of the [yavam's] shoe are tied on his leg below the knee,41 And not on his foot itself, as mentioned in Halachah 6. or if she performed chalitzah in the presence of three common people who are not able to read the verses [which the two recite],42 Instead of

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judges who know how to read, as stated in Halachah 5. the chalitzah is acceptable. Similarly, if [a yavam who is] blind43 Although at the outset, a blind person should not perform this act as stated in Halachah 8. performs chalitzah, [the chalitzah is acceptable].

Halachah 16

חֲלִיצָה בַּלַּיְלָה אוֹ שֶׁחֲלָצָהּ בִּפְנֵי שְׁנַיִם אוֹ בִּפְנֵי שְׁלֹשָׁה וְנִמְצָא אֶחָד מֵהֶן קָרוֹב אוֹ פָּסוּל. אוֹ שֶׁהָיָה הַמִּנְעָל קָשׁוּר לְמַעְלָה מִן הָאַרְכֻּבָּה. אוֹ שֶׁהִתִּיר הוּא וְשָׁמְטָה הִיא אוֹ שֶׁהִתִּירָה הִיא וְשָׁמַט הוּא. אוֹ שֶׁנִּתְכַּוְּנָה הִיא וְלֹא נִתְכַּוֵּן הוּא. אוֹ שֶׁנִּתְכַּוֵּן הוּא וְלֹא נִתְכַּוְּנָה הִיא. וְכֵן קְטַנָּה שֶׁחָלְצָה לְגָדוֹל. חֲלִיצָתָן פְּסוּלָה. וְכֵן אִם חָלְצָה בִּפְנֵי יָחִיד וַאֲפִלּוּ בֵּינוֹ לְבֵינָהּ וּבַלַּיְלָה הֲרֵי זוֹ חֲלִיצָה פְּסוּלָה. אֲבָל חֵרֵשׁ שׁוֹטֶה וְקָטָן שֶׁחָלְצוּ וְכָל הַחוֹלֵץ לְמִי שֶׁהִיא פְּטוּרָה מִן הַחֲלִיצָה וּמִן הַיִּבּוּם אֵינָהּ חֲלִיצָה:

Chalitzah is unacceptable [in the following instances]:a) a woman performed chalitzah at night,44 See Halachah 5.b) she performed chalitzah in the presence of two judges or in the presence of three judges, and one of them was a relative or [otherwise] disqualified [from serving in this capacity,45 Since chalitzah is considered a judgment, three acceptable judges must preside over the ceremony.c) the shoe was tied above his knee,46 Deuteronomy 25:9 states: "She shall remove his shoe from his foot." If the shoe is tied above the knee, it is not considered to have been removed from his foot.d) he untied the shoe and she removed it,47 The entire act of removing the shoe must be performed by the woman. The Ramah (Even HaEzer 169:33) quotes Rabbenu Asher, who rules that if the man could walk wearing the shoe while it is untied, the chalitzah is acceptable even if the man untied the shoe and the woman removed it. or she untied the shoe and he removed it,e) she had the intent of performing [these acts to release herself from her obligation to her yavam] but he did not, or he had the intent of performing [these acts to release her from her obligation to her yavam] but she did not,48 As stated in Halachah 8, the ceremony must be performed with this intent in mind.f) or a girl below the age of majority removed the shoe of an adult.49 Since the girl is not past the age of majority, her deed is not totally effective. Nevertheless, since she can be be married at this age, her deed has a minimal effect, and she can no longer perform yibbum.Similarly, if a woman performs chalitzah in the presence of one judge, or even if chalitzah is performed at night by [the yevamah and the yavam] while they are alone, the chalitzah is unacceptable.50 The Rambam's intent is that the chalitzah is unacceptable, but it at least has the effect of preventing the woman from performing yibbum in the future, as opposed to a chalitzah that is of no consequence, as explained in Halachah 26. When, however, chalitzah is performed by a deaf-mute, a mentally incapable person, or a minor,51 These individuals are all considered mentally incompetent, and their deeds are not considered of consequence with regard to Torah law. As mentioned above, there are opinions that maintain that chalitzah performed by a deaf-mute is unacceptable, but not of no consequence whatsoever. and similarly, when a man performs chalitzah with a woman who is not obligated to perform chalitzah or yibbum,52 E.g., a yevamah who is

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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pregnant. the chalitzah is of no consequence.

Halachah 17

יָבָם שֶׁרַגְלוֹ הַיְמָנִית חֲתוּכָה אֵינוֹ חוֹלֵץ בִּשְׂמֹאל וְאִם חָלְצָה מֵעַל שְׂמֹאלוֹ חֲלִיצָתָהּ פְּסוּלָה. הָיְתָה רַגְלוֹ עֲקֻמָּה לְאָחוֹר אוֹ הֲפוּכָה עַל צִדָּהּ אוֹ שֶׁהָיָה מְהַלֵּךְ עַל רָאשֵׁי אֶצְבְּעוֹת רַגְלָיו הֲרֵי זֶה אֵינוֹ חוֹלֵץ שֶׁהַחוֹלֵץ צָרִיךְ לִנְעֹץ עֲקֵבוֹ בָּאָרֶץ וְזֶה אֵינוֹ יָכוֹל. וְאִם חָלְצָה לְמִי שֶׁרַגְלוֹ כְּךָ הֲרֵי חֲלִיצָתָהּ פְּסוּלָה:

When a yavam's right leg is cut off, he should not perform chalitzah with his left leg.53 The commentaries explain that the Rambam's opinion is that such a man should not perform chalitzah at all. Other commentaries maintain that if the stump of the yavam's leg can be placed in a shoe and that shoe tied beneath his knee, the chalitzah is acceptable. Although the Rambam accepts, after the fact, chalitzah performed when the straps of the shoe are tied below the yavam's knee, that is only because it is theoretically possible to have tied them on his foot. When it is impossible to tie the shoe on to his foot, as in the instance at hand, the chalitzah should not be performed (Maggid Mishneh).The Shulchan Aruch (Even HaEzer 169:35) mentions both opinions, but appears to favor the Rambam's view. The Beit Yosef states that according to the Rambam, such a chalitzah is of no consequence at all. The Beit Shmuel 169:33 states that since there are authorities who maintain that such a chalitzah is acceptable, the later authorities agree that a woman may not perform yibbum after such a chalitzah. If he performs chalitzah with his left leg, the chalitzah is unacceptable.If [the yavam] is bowlegged, his foot turns to his side, or he always walks on the tips of his toes, she should not perform chalitzah, for the man performing chalitzah must press his heel to the ground, and such a person is incapable of this. If a person with such a disability in his legs performs chalitzah, the chalitzah is unacceptable.54 After the fact, if a yavam does not press his heel to the ground in an ordinary instance, the chalitzah is, nevertheless, acceptable. The distinction between an ordinary chalitzah and the case at hand is that ordinarily, it is possible for the yavam to press his heel to the ground, and therefore the fact that he does not actually do so is not significant. In this instance, the yavam is incapable of doing so. Hence, the chalitzah is unacceptable.Although the Ra'avad and others differ with the Rambam on this issue, the Shulchan Aruch (Even HaEzer 169:34) accepts the Rambam's view.

Halachah 18

וְיֶבֶמָה שֶׁיָּדֶיהָ חֲתוּכוֹת חוֹלֶצֶת לְכַתְּחִלָּה וַאֲפִלּוּ בְּשִׁנֶּיהָ שֶׁלֹּא נֶאֱמַר וְחָלְצָה בְּיָדָהּ. חָלְצָה בְּמִנְעָל שֶׁל בֶּגֶד אֵינָהּ חֲלִיצָה. אֲבָל אִם חָלְצָה בְּמִנְעָל שֶׁאֵין לוֹ עָקֵב. אוֹ שֶׁהָיָה תָּפוּר בְּפִשְׁתָּן. אוֹ שֶׁהָיָה מִנְעָל שֶׁל שֵׂעָר אוֹ שֶׁל סִיב אוֹ שֶׁל שַׁעַם אוֹ שֶׁל עֵץ. אוֹ שֶׁהָיָה מִנְעָל גָּדוֹל שֶׁאֵינוֹ יָכוֹל לְהַלֵּךְ בּוֹ אוֹ קָטָן שֶׁאֵינוֹ חוֹפֶה אֶת רֹב רַגְלוֹ. אוֹ מִנְעָל פָּרוּם שֶׁאֵינוֹ חוֹפֶה רֹב הָרֶגֶל אוֹ נִפְחַת שֶׁאֵין מְקַבֵּל רֹב הָרֶגֶל. חֲלִיצָתָהּ פְּסוּלָה:

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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When is a minority worth worrying about? — Bekhorot 20, the beehive's shadow, and Solomon's asking heart

Thursday, 8 October 2026 · Aliyah 5/7 (Genesis 4:19-4:22) · Daf Bekhorot 20

A yevamah whose hands are cut off may perform chalitzah. A priori, [it is acceptable,] even if [she must remove the shoe] with her teeth, for the verse does not say that she will remove it with her hands.If she removes a shoe made from cloth, she has not performed chalitzah.55 A cloth shoe does not protect the foot at all; therefore, it is not considered a shoe (Yevamot 103a). This ruling is also applied in other contexts - e.g., on Yom Kippur, when we are forbidden to wear shoes, it is permitted to wear a cloth shoe (Hilchot Sh'vitat Asor 3:7).The Rashba and others maintain that there is no difference between a cloth slipper and a shoe made from the other substances mentioned. This is the view quoted by the Shulchan Aruch (Even HaEzer 169:22). If, however, she removes a shoe that does not have a heel, [a shoe] that was sewn with linen threads, a shoe made from goats' hair, the inner bark of a palm tree, cork or wood, the chalitzah is unacceptable.56 These substances offer some protection, and so the chalitzah is of some consequence. Nevertheless, when the Torah uses the word נעל, the intent is always a leather shoe.[This same ruling applies if] the shoe is so large that [the yavam] could not walk in it, if it is so small that it does not cover the majority of his foot, it is torn to the extent that it does not cover the majority of his foot, or the sole is opened to the extent that it does not cover the majority of his foot.

Halachah 19

חָלְצָה בְּסַנְדָּל שֶׁל עֵץ וּמְחֻפֶּה עוֹר אוֹ הָיְתָה קַרְקָעִיתוֹ עוֹר וּלְחָיֶיו שֶׁל שֵׂעָר. אוֹ שֶׁחָלְצָה סַנְדָּל שֶׁל שְׂמֹאל מֵעַל רַגְלוֹ הַיְמָנִית. אוֹ שֶׁלֹּא הָיָה הַמִּנְעָל שֶׁלּוֹ אוֹ (שֶׁלֹּא) הָיָה גָּדוֹל שֶׁיָּכוֹל לְהַלֵּךְ בּוֹ. אוֹ קָטָן שֶׁחוֹפֶה אֶת רֹב רַגְלוֹ אוֹ נִפְרַם שֶׁחוֹפֶה אֶת רֹב הָרֶגֶל אוֹ נִפְחַת שֶׁמְּקַבֵּל רֹב הָרֶגֶל. חֲלִיצָתוֹ כְּשֵׁרָה:

Chalitzah is acceptable,57 This applies after the fact. A priori, none of these situations is acceptable. however, in the following instances:a) a sandal was made of wood58 The same rules apply with regard to a shoe made from any of the other substances mentioned in the previous halachah and covered with leather (Maggid Mishneh). and covered with leather, or its soles were leather, and its sides were made from goats' hair,b) [the yevamah] removed a left shoe from [the yavam's] right foot,c) the shoe did not belong to the [the yavam],59 In the present age, when the Rabbinic court owns a special chalitzah shoe, it is customary to give it to the yavam as a present before the ceremony.d) it was oversized, but he could still walk while wearing it,e) it was small, but it covered the majority of his foot,f) it was torn, but it covered the majority of his foot, org) the sole was opened, but it covered the majority of his foot.

Halachah 20

סַנְדָּל הַמְּסֻגָּר וְהַמְּחֻלָּט וְשֶׁל עַכּוּ"ם שֶׁמַּנִּיחִין אוֹתוֹ בְּרַגְלֵי הַצּוּרָה לֹא תַחֲלֹץ בּוֹ. וְאִם חָלְצָה חֲלִיצָתָהּ כְּשֵׁרָה. וְאַף עַל פִּי שֶׁהוּא אָסוּר בַּהֲנָאָה. אֲבָל סַנְדָּל שֶׁל תִּקְרֹבֶת עַכּוּ"ם וְשֶׁל עִיר הַנִּדַּחַת. אוֹ שֶׁנַּעֲשָׂה לְמֵת שֶׁיִּקָּבֵר בּוֹ. אִם חָלְצָה בּוֹ חֲלִיצָתָהּ פְּסוּלָה שֶׁהֲרֵי אֵינוֹ עוֹמֵד לְהַלֵּךְ בּוֹ:

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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When is a minority worth worrying about? — Bekhorot 20, the beehive's shadow, and Solomon's asking heart

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When it is questionable that a sandal is affected by tzara'at, or it has definitely been established that this is the case,60 See Hilchot Tum'at Tzara'at, Chapter 12, which describes the process in which a garment or shoe affected by tzara'at is judged by a priest. There are two stages to this process: one in which the article is "quarantined" for a period of a week to determine whether it has actually been affected, and a second stage during which the priest declares that the article is affected and must be burned. and a sandal belonging to a false deity - i.e., one placed on the feet of an image61 Rashi (Yevamot 103b) interprets this as a leather covering placed on the feet of an idol to prevent damage when it is transported from place to place. Thus, the sandal is placed in the category of "an accessory to a false deity." - should not be used for chalitzah.62 For it is abhorrent to use an article associated with impurity or false deities for the purpose of a mitzvah (Yevamot 103b). If, however, it is used for that purpose, the chalitzah is acceptable, despite the fact that deriving benefit from [the sandal] is forbidden.63 The rationale is that the performance of mitzvot is not considered to be a personal benefit (ibid.).[Different rules apply with regard to a sandal that was made from an animal] offered to a false deity,64 Our translation is based on the gloss of the Maggid Mishneh. The Maggid Mishneh continues, stating that if a sandal itself is offered to a false deity, it does not become forbidden. See Beit Shmuel 169:23.The difference between this and the previous instance can be explained as follows: It is possible to nullify the connection between "an accessory to a false deity" and the worship of the false deity. (See Hilchot Avodat Kochavim 8:8-9.) As such, there is a possibility that such a sandal will not have to be destroyed. An object offered to a false deity, including the hide from which a sandal was made, can never be separated from its association with the false deity (ibid.). As such, it is condemned to be destroyed, forbidden for eternity and considered as if it did not exist. Hence, it is not considered as if the yevamah removed a significant entity from the yavam's foot. one from an apostate city,65 See Hilchot Avodat Kochavim, Chapter 4, which describes the laws governing such a city. All the property in the city is condemned to be burned, and thus it cannot be used for chalitzah, for the reasons described above. or one that was made to be worn by a corpse when it is buried. If [such a sandal] is used for chalitzah, the chalitzah is unacceptable. [The rationale is] that such a sandal was not made for a person to wear while walking.

Halachah 21

קָרְעָה הַמִּנְעָל מֵעַל רַגְלוֹ אוֹ שֶׁשְּׂרָפַתּוּ אוֹ שֶׁהָיָה לָבוּשׁ שְׁתֵּי מִנְעָלִין וְחָלְצָה הָעֶלְיוֹן אַף עַל פִּי שֶׁקָּרְעָה הַתַּחְתּוֹן עַד שֶׁנִּתְגַּלְּתָה רַגְלוֹ הֲרֵי זוֹ חֲלִיצָה פְּסוּלָה:

If [the yevamah] tears the shoe off [the yavam's] foot or burns it, the chalitzah is unacceptable.66 Yevamot 102a questions whether the Torah's intent is that the yevamah must bare the yavam's foot, in which instance these examples would be acceptable, or she must remove his shoe in the ordinary manner, in which instance they would not be

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acceptable. Since the question remains unresolved, the Rambam rules stringently. [The same ruling applies if the yavam] is wearing two shoes [on his right foot, one on top of the other,] and the yevamah removes [only] the upper one [in the ordinary manner]. Even if she tears off the lower one so that his foot is revealed, the chalitzah is unacceptable.

Halachah 22

יְבָמָה שֶׁאָכְלָה שׁוּם אוֹ גַּרְגִּיר וְכֵיוֹצֵא בָּהֶן מִדְּבָרִים שֶׁמַּרְבִּין אֶת הָרֹק וְהָיָה הָרֹק זָב מִפִּיהָ אֵינוֹ כְּלוּם עַד שֶׁיִּהְיֶה הָרֹק מֵעַצְמוֹ:

When a yevamah eats garlic, mustard,67 Our translation is based on the Aruch. It is possible that it is not precise according to the Rambam's view. The intent, however, is definitely a sharp pungent herb. or other similar condiments that increase a person's spittle, and spittle was dripping from her mouth, [the spitting] is of no consequence.68 The intent is that she must spit again in order for the chalitzah to be performed as required. Even if she does not spit at all, the chalitzah is acceptable after the fact, as stated in Halachah 12 (Maggid Mishneh). [Instead,] the spittle must be produced without any external cause.

Halachah 23

רָקְקָה דָּם אוֹ שֶׁהָיָה שׁוֹתֶת מִפִּיהָ אֵינוֹ כְּלוּם. וְאִם מָצְצָה וְרָקְקָה כָּשֵׁר שֶׁאִי אֶפְשָׁר לְדָם שֶׁנִּמְצָץ בְּלֹא צְחִצּוּחֵי רֹק. רָקְקָה וּקְלָטַתּוּ הָרוּחַ קֹדֶם שֶׁיַּגִּיעַ לִכְנֶגֶד פָּנָיו כְּגוֹן שֶׁהָיְתָה אֲרֻכָּה וְהוּא קָצָר אֵינוֹ כְּלוּם. וְאִם אַחַר שֶׁהִגִּיעַ לְנֶגֶד פָּנָיו אַף עַל פִּי שֶׁלֹּא הִגִּיעַ לָאָרֶץ כָּשֵׁר. וְכֵן אִם לֹא רָאוּ הַדַּיָּנִין הָרֹק כְּשֶׁיָּצָא מִפִּיהָ כָּשֵׁר:

If [a yevamah] spits blood,69 Rabbenu Asher differs and maintains that a yevamah who spits blood need not spit again, even if she does not suck her wound. His view is accepted by the Shulchan Aruch (Even HaEzer 169:40). or if blood is dripping from her mouth, [the spitting] is of no consequence. If she sucks [the wound] and then spits, it is acceptable, for it is impossible that there will be blood that was sucked out without some drops of spittle.70 The fact that spittle is mixed with blood or another substance does not disqualify it.If she spits, and the wind blows away the spittle before it passed before his face - e.g., she is tall and he is short - [the spitting] is of no consequence. If [the wind blows] the spittle [away] after it passes before his face, but before it lands on the ground, it is acceptable.71 The intent is that the spittle must pass in front of or below the yavam's face. If the yevamah was taller than the yavam and the wind moved her spittle away before it passed before his face, the spitting is not acceptable.If the judges do not see the spittle emerge from [the yevamah's] mouth,72 Although a priori the judges must see the spittle, as stated in Halachah 7, after the fact their failure to do so does not render the spitting unacceptable.In Yevamot 106b, a phrase "before the eyes of the elders" (Deuteronomy 25:9 is cited as a

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support for this requirement. Nevertheless, the Rabbis explain that the requirement is Rabbinic and not Scriptural in origin, and the verse is merely an asmachta. See the Beit Shmuel 169:39. it is acceptable.

Halachah 24

חֲלִיצָה מֻטְעֵית פְּסוּלָה. כֵּיצַד. כְּגוֹן שֶׁאָמְרוּ לוֹ חֲלֹץ לָהּ וּבְכָךְ אַתָּה כּוֹנְסָהּ. אוֹ שֶׁאָמְרוּ לוֹ חֲלֹץ לָהּ שֶׁזּוֹ מִצְוָה הִיא וְאֵינָהּ מַפְסֶדֶת עָלֶיךָ כְּלוּם וְאִם תִּרְצֶה אַחַר כָּךְ לְיַבֵּם תְּיַבֵּם וְכַיּוֹצֵא בְּדִבָּרִים אֵלּוּ פְּסוּלָה. אֲבָל אִם הִטְעוּהוּ וְאָמְרוּ לוֹ חֲלֹץ לָהּ עַל מְנָת שֶׁתִּתֵּן לְךָ מָאתַיִם זוּז אוֹ עַל תְּנַאי כָּךְ וְכָךְ אַף עַל פִּי שֶׁלֹּא נָתְנָה וְלֹא נִתְקַיֵּם הַתְּנַאי חֲלִיצָתָהּ כְּשֵׁרָה שֶׁהֲרֵי נִתְכַּוֵּן לַחֲלֹץ לָהּ:

Chalitzah performed under mistaken premises is unacceptable.What is implied? For example, [if the yavam] was told: "Perform chalitzah for her; this is the manner in which you acquire her as a wife," "Perform chalitzah for her. It is a mitzvah, and you do not lose any rights. If you later desire to perform yibbum, you may,"73 Note the Maggid Mishneh, which mentions that there is a dispute among the Rabbis about this issue. The rationale for the position that the chalitzah is acceptable is that in this instance, the yavam did intend to free the yevamah from her obligation to him. (See also Shulchan Aruch, Even HaEzer 169:52.) or the like, [the chalitzah] is unacceptable.74 For as mentioned in Halachah 8, the chalitzah must be performed with the intent of releasing the woman from her obligation.The chalitzah is, however, effective, in that it prevents the man (or his brothers) from ever performing yibbum with this woman. Therefore, the man is compelled by the court to perform an acceptable chalitzah, for from this point on he has nothing to lose, and through his act he can enable the woman to remarry (Rashba, as quoted by Maggid Mishneh; Shulchan Aruch, loc. cit. 169:51).If, however, he was deceived and was told: "Perform chalitzah for her on the condition the she give you 200 zuz" - or "...under any other condition" - the chalitzah is acceptable,75 This applies even if the condition is stated in a manner that meets the requirements of conditional statements (Shulchan Aruch, loc. cit.:50). even though she did not give [him the money] or fulfill the condition.76 If such a condition is made, the woman is, however, rightfully obligated to pay the amount she agreed to pay, unless she has a reason for which she considers the yavam as unfit to marry her that the court would accept [Shulchan Aruch (ibid.)]. [The rationale is that] he had the intent [of releasing her from her obligation] when he performed chalitzah.

Halachah 25

הַמּוֹסֵר מוֹדָעָא עַל הַחֲלִיצָה חֲלִיצָתוֹ פְּסוּלָה. לְפִיכָךְ רָאוּי לַדַּיָּנִין לוֹמַר לוֹ לְבַטֵּל הַמּוֹדָעָא כְּדֶרֶךְ שֶׁעוֹשִׂין בְּגֵט. לְחָצוּהוּ יִשְׂרְאֵלִים וְהִכּוּהוּ עַד שֶׁחָלַץ אִם כַּדִּין עָשׂוּ חֲלִיצָתוֹ כְּשֵׁרָה. וְאִם שֶׁלֹּא כַּדִּין עָשׂוּ כְּגוֹן שֶׁהָיוּ הֲדְיוֹטוֹת אוֹ שֶׁטָּעוּ חֲלִיצָתוֹ פְּסוּלָה. וְאִם הָעַכּוּ"ם אֲנָסוּהוּ מֵעַצְמָן. אִם הָיָה הַדִּין נוֹתֵן שֶׁיַּחֲלֹץ חֲלִיצָתוֹ פְּסוּלָה. וְאִם שֶׁלֹּא כַּדִּין אֵינָהּ חֲלִיצָה:

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

PARSHAT BERESHIT

When is a minority worth worrying about? — Bekhorot 20, the beehive's shadow, and Solomon's asking heart

Thursday, 8 October 2026 · Aliyah 5/7 (Genesis 4:19-4:22) · Daf Bekhorot 20

When [a man] issues a protest77 Based on Hilchot Gerushin 6:19, it would appear that the intent is that he tells two witnesses that he does not want to perform the chalitzah, the chalitzah should be nullified, because he is being compelled to perform it. with regard to chalitzah, the chalitzah is not acceptable.78 Yevamot 106a establishes an equivalence between divorce and chalitzah with regard to these laws. On this basis, the Rivash (Responsum 482, quoted by the Kessef Mishneh in the gloss on Halachah 16) raises a difficulty, noting that when a husband issues a protest regarding a get, the get is nullified entirely. With regard to chalitzah, however, the Rambam rules that it is merely unacceptable.The Rivash offers a resolution, explaining that when a protest is issued with regard to a get, the get itself becomes nullified, and therefore the divorce is of no consequence at all. With regard to chalitzah, however, the yavam did perform all the required acts. His protest is accepted to the extent that it is considered that he performed these acts without intending to release the woman from her obligation. This, however, merely causes a chalitzah to be unacceptable, as stated in Halachah 16. It does not nullify it entirely. Therefore, it is proper for the judges to tell [the yavam] to nullify all protests [before he performs chalitzah], as they do with regard to a get.79 See Hilchot Gerushin 6:20.[The following rules apply when] Jews compel [a yavam] and beat him until he performs chalitzah:80 The equivalence established by Yevamot 106a applies in this context as well. The Rambam discusses the laws governing a get given under compulsion in Hilchot Gerushin 2:20. If they act according to law,81 This refers to a situation analogous to those described in Chapter 2, Halachah 14, or Chapter 6, Halachah 4, in which the person should be compelled to perform chalitzah.The Ramah (Even HaEzer 169:13) states that even according to the Ashkenazic authorities who maintain that the mitzvah of chalitzah takes precedence, a yavam may be compelled to perform chalitzah only for these reasons. the chalitzah is acceptable.82 For, as stated in Hilchot Gerushin, the person's actions are considered to be performed voluntarily, because:He wants to be part of the Jewish people, and he wants to perform all the mitzvot and eschew all the transgressions; it is only his evil inclination that presses him. Therefore, when he is beaten until his [evil] inclination has been weakened, and he consents, he is considered to have [acted] willfully. If they do not act according to law - e.g., they were commoners or they erred [in judgment] - the chalitzah is not acceptable.If gentiles force [a yavam to perform chalitzah] on their own initiative,83 I.e., as opposed to acting as agents for a Jewish court. but the law would require that chalitzah be performed, the chalitzah is unacceptable. If they do not act according to law, the chalitzah is of no substance.

Halachah 26

כָּל מָקוֹם שֶׁאָמַרְנוּ אֵינָהּ חֲלִיצָה אוֹ לֹא עָשָׂה כְּלוּם אוֹ אֵינָהּ כְּלוּם הֲרֵי הִיא כִּאִלּוּ לֹא נֶחְלְצָה לוֹ וְלֹא נֶאֱסְרוּ עָלָיו קְרוֹבוֹתֶיהָ וְלֹא נִפְסְלָה מִן הַכְּהֻנָּה וּמֻתֶּרֶת לְהִתְיַבֵּם. וְכָל מָקוֹם שֶׁאָמַרְנוּ חֲלִיצָתָהּ

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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פְּסוּלָה נֶאֱסְרוּ עָלָיו קְרוֹבוֹתֶיהָ וְנִפְסְלָה מִן הַכְּהֻנָּה וְנֶאֱסְרָה עַל הָאַחִין וְאֵינָהּ מִתְיַבֶּמֶת וְאֵינָהּ מֻתֶּרֶת לְהִנָּשֵׂא לְזָר עַד שֶׁתַּחֲלֹץ חֲלִיצָה כְּשֵׁרָה׃

Whenever we have used the terms, "the chalitzah is of no substance," "his actions are of no consequence," or "nothing has been accomplished," the intent is that it is as if the chalitzah had not been performed at all. He does not become forbidden to her relatives,84 See Chapter 1, Halachah 13. nor is she forbidden to the priesthood, and she is permitted to perform yibbum.Whenever we have used the term, "the chalitzah is unacceptable,"85 As mentioned above, there is a difference of opinion among the Rabbis if the Rambam's intent is that these acts of chalitzah are acceptable according to Scriptural law or not. he becomes forbidden to her relatives, and she becomes forbidden to the priesthood. She also becomes forbidden to all the brothers, and she may not perform yibbum. She may not marry another man, however, until she performs an acceptable chalitzah.

Halachah 27

עָבְרָה וְנִשֵּׂאת הֲרֵי זֶה חוֹלֵץ לָהּ חֲלִיצָה כְּשֵׁרָה וְהִיא תֵּחַת בַּעְלָהּ וְאֵין מוֹצִיאִין אוֹתָהּ מִיָּדוֹ׃

If she transgresses and marries [another man], [the yavam] should perform an acceptable chalitzah with her. She is allowed to remain married to her husband; she is not sent away from him.86 The Maggid Mishneh states that the woman should, however, be forced to separate from her second husband until she performs an acceptable chalitzah. The Shulchan Aruch (Even HaEzer 169:55) follows this ruling.

Halachah 28

יְבָמָה שֶׁגְּדָלָה בֵּין הָאַחִין הֲרֵי זוֹ מֻתֶּרֶת לְהִתְיַבֵּם וְאֵין חוֹשְׁשִׁין לָהּ שֶׁמָּא חָלְצָה לְאֶחָד מֵהֶן בֵּינוֹ לְבֵינָהּ וְנִפְסְלָה עֲלֵיהֶן. אֲבָל אִם רְאִינוּהָ שֶׁחָלְצָה נַעֲלוֹ שֶׁל אֶחָד מֵהֶן נִפְסְלָה שֶׁמָּא נִתְכַּוְּנָה לַחֲלִיצָה וּצְרִיכָה חֲלִיצָה כְּשֵׁרָה לְהַתִּירָהּ לָזָר׃

When a yevamah grows up together with [her deceased husband's] brothers, she is permitted to perform yibbum. We do not suspect that she performed chalitzah with one of them alone and thus became forbidden to them.87 As stated in Halachah 16.If, however, we see that she removed the shoe of one [of the brothers], she is disqualified [from yibbum], lest she have intended to perform chalitzah.88 The Kessef Mishneh states that the Rambam's ruling alludes to the following law: If neither the yevamah nor the yavam has the intent to perform chalitzah, the fact that she removes his shoe is of no consequence, and she is permitted to perform yibbum. Note the discussion of this subject in Sefer HaKovetz. An acceptable chalitzah must, however, be performed to enable her to marry another man.

Halachah 29

גֵּט חֲלִיצָה שֶׁאָנוּ כוֹתְבִין לָהּ אֵינוֹ אֶלָּא מַעֲשֵׂה בֵית דִּין כְּדֵי שֶׁיִּהְיֶה בְּיָדָהּ רְאָיָה שֶׁנֶּחְלְצָה וְאֵין הַדַּיָּנִין

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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חוֹלְצִין אֶלָּא אִם כֵּן מַכִּירִין. לְפִיכָךְ מִי שֶׁרָאָה זֹאת שֶׁנֶּחְלְצָה כּוֹתְבִין לָהּ גֵּט חֲלִיצָה אַף עַל פִּי שֶׁאֵינָן מַכִּירִין שֶׁזּוֹ הִיא בַּת פְּלוֹנִי וְאֵשֶׁת פְּלוֹנִי וְשֶׁזֶּה שֶׁחָלַץ לָהּ אָחִיו הוּא. שֶׁהֲרֵי הַדַּיָּנִין שֶׁחָלְצָה בִּפְנֵיהֶם הִכִּירוּ זֶה וְאַחַר כָּךְ חָלְצָה:

The document recording the chalitzah that we compose is merely a legal record,89 This distinguishes it from a bill of divorce (a get), which is actually necessary to effect the divorce. For that reason (as implied by Hilchot Gerushin 11:9), it need not be written for the sake of the man and the woman, nor is it bound by the other details that apply to a get.Note, however, the Shulchan Aruch (Even HaEzer 169:56), which states that the paper on which the document is written must be ruled with a stylus (i.e., sirtut is required), because it contains Biblical verses. so that a woman will have at hand proof that she performed chalitzah.Judges do not preside over chalitzah unless they know the identity [of the yevamah and the yavam]. Therefore, a person who observes chalitzah can write a document recording the chalitzah although he does not know90 The Rambam is emphasizing that we do not suspect that perhaps the court erred and presided over a chalitzah without knowing the identity of the parties involved. that the woman is so and so's daughter, that her deceased husband was so and so, and that the person who performed chalitzah with her was [her husband's] brother. [He can assume] that the judges who presided over the chalitzah clarified these matters and afterwards had the chalitzah performed.

Halachah 30

וזהו נוסח גט חליצה שנהגו בו העם: בְּיוֹם פְּלוֹנִי כָּךְ וְכָךְ לְיֶרַח פְּלוֹנִי שְׁנַת כָּךְ וְכָךְ לִבְרִיאַת עָלְמָא לְמִנְיָנָא דְּרָגִילְנָא לְמִימְנֵי בָּהּ בְּמָקוֹם פְּלוֹנִי אֲנַחְנָא דַּיָּנֵי דִּמְקָצָתְנָא חֲתִימִין לְתַתָּא בְּמוֹתַב תְּלָתָא כַּחֲדָא הֲווֹינָא יָתְבִין בְּבֵי דִינָא וּסְלִיקָא לָקֳדָמָנָא פְּלוֹנִית בָּרַת פְּלוֹנִי אַרְמְלָתָא דִּפְלוֹנִי. וְקָרְבַת לָקֳדָמָנָא גְּבַר חַד דִּשְׁמֵיהּ פְּלוֹנִי בַּר פְּלוֹנִי. וְכֵן אָמְרָה לָנָא פְּלוֹנִית דָּא. פְּלוֹנִי בַּר פְּלוֹנִי דְּנָא אֲחוּהָ דִּפְלוֹנִי בַּעְלִי מֵאֲבוּהָ הֲוָה דַּהֲווֹינָא נְסִיבָא לֵיהּ וְשָׁכִיב וְחַיֵּי לְרַבָּנָן וּלְכָל יִשְׂרָאֵל שָׁבַק. וּבַר וּבָרַת יָרִית וּמַחְסִין וּמוֹקִים שְׁמָא בְּיִשְׂרָאֵל לֹא שָׁבַק. וְהָדִין פְּלוֹנִי אֲחוּהִי חָזִי לְיִבּוּמֵי יָתִי. כְּעַן רַבָּנָן אָמְרוּ לֵיהּ אִי צָבֵי לְיִבּוּמֵי יָתִי יַיבֵּם וְאִי לֹא יִטְלַע לִי רַגְלֵיהּ דִּימִינָא קָדָמֵיכוֹן וְאַשְׁרֵי סֵינֵיהּ מֵעַל רַגְלֵיהּ וְאֵרֹק בְּאַנְפּוֹהִי. וְאִשְׁתְּמוֹדַעְנוּהוּ לְפְלוֹנִי דְּנָא דַּאֲחוּהִי דִּפְלוֹנִי מִיתְנָא מֵאֲבוּהִי הוּא וַאֲמַרְנָא לֵיהּ אִי צָבֵית לְיִבּוּמֵי יָתָהּ יַבֵּם וְאִי לֹא אַטְלַע לָהּ קָדָמָנָא רַגְלָךְ דִּימִינָא וְתִשְׁרֵי סֵינָךְ מֵעַל רַגְלָךְ וְתָרֹק בְּאַנְפָּךְ. וְעָנֵי וְאָמַר לָנָא לֵית אֲנָא צָבֵי לְיִבּוּמֵי יָתָהּ. מִיַּד אַקְרִינוּהָ לִפְלוֹנִית דָּא מֵאֵן יְבָמִי לְהָקִים לְאָחִיו שֵׁם בְּיִשְׂרָאֵל לֹא אָבָה יַבְמִי. וְאַף לְהַאי פְּלוֹנִי אַקְרִינוּהוּ לֵיהּ לֹא חָפַצְתִּי לְקַחְתָּהּ. וְאַטְלַע לָהּ רַגְלֵיהּ דִּימִינָא וְשָׁרַת סֵינֵיהּ מֵעַל רַגְלֵיהּ וְרָקַת בְּאַנְפּוֹהִי רֹקָא דְּאִיתְחֲזִי לָנָא מִפּוּמָהּ עַל אַרְעָא. וְתוּב אַקְרִינוּהָ לִפְלוֹנִית דָּא כָּכָה יֵעָשֶׂה לָאִישׁ אֲשֶׁר לֹא יִבְנֶה אֶת בֵּית אָחִיו וְנִקְרָא שְׁמוֹ בְּיִשְׂרָאֵל בֵּית חֲלוּץ הַנָּעַל. וַאֲנַחְנָא דַּיָּנֵי וְכָל דְּהַווּ יָתְבִין קָדָמָנָא עֲנִינָן בַּתְרֵיהּ חֲלוּץ הַנָּעַל חֲלוּץ הַנָּעַל חֲלוּץ הַנָּעַל

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PARSHAT BERESHIT

When is a minority worth worrying about? — Bekhorot 20, the beehive's shadow, and Solomon's asking heart

Thursday, 8 October 2026 · Aliyah 5/7 (Genesis 4:19-4:22) · Daf Bekhorot 20

תְּלַת זְמָנִין. וּמִדְּאִיתְּעֲבִיד עֲבְדָּא דָּא קֳדָמָנָא שָׁרִינוּהָ לְפִלּוֹנִית דָּא לְמֶהֱךְ לְהִתְנַסְּבָא לְכָל מַאן דְּתִצְבֵּי וְאִינַשׁ לָא יִמְחֵה בְּיֵדֵהּ מִן יוֹמָא דְּנָן וּלְעָלַם. וּבְעִית מִנָּנָא פִּלּוֹנִית דָּא גִּטָּא דַּחֲלִיצוּתָא דָּא וּכְתַבְנָא וַחֲתַמְנָא וִיהַבְנָא לָהּ לְזָכוּ כְּדַת מֹשֶׁה וְיִשְׂרָאֵל. פִּלּוֹנִי בַּר פִּלּוֹנִי עֵד. פִּלּוֹנִי בַּר פִּלּוֹנִי עֵד:

This is the formal text of the document recording the chalitzah that is employed at present:On this day of the week and on this day of the month, in this year from the time of creation, according to the reckoning that is followed in this and this place, we, the judges, of whom several have signed below,91 For as stated in Halachah 5, at the outset five judges are necessary. Nevertheless, it is the presence of three that is considered significant. sat in a session of three in court. So and so, the widow of so and so, the daughter of so and so, approached us, as did a man named so and so, the son of so and so.And this woman told us: "So and so, the son of so and so, [is] the paternal brother of so and so, my husband. [My husband,] to whom I was married, died, leaving life to the Sages and to the entire Jewish people. He did not leave a son or a daughter to inherit him and to perpetuate his name within Israel. So and so, his brother is fit to perform yibbum with me."Rabbis, tell that man: 'If you desire to perform yibbum, do so.' If not, let him place his right foot before me, and I will remove his shoe from his foot and spit before him."We clarified the identity of so and so and that he is the paternal brother of so and so, and we told him: "If you desire to perform yibbum, do so. If not, place your right foot before us, so that she can remove your shoe from your foot and spit before you." He answered us: "I do not desire to perform yibbum."Immediately, we had this woman recite after us:92 Using the Hebrew words of the verse. "My yavam refuses to raise a name for his brother within Israel. My yavam does not desire [to perform yibbum]."And then, we had the man recite after us:93 Using the Hebrew words of the verse. "I do not desire to take her." He then placed his right foot forward. She removed his shoe from his foot and spit before him, emitting spittle that could be seen by us from her mouth to the ground.We then had her recite after us:94 Using the Hebrew words of the verse. "This is what should be done to a man who does not build his brother's household. And his [family] shall be called within Israel 'the household of the one whose shoe was removed.' And we the judges, and all those sitting before us, answered after her: "the one whose shoe was removed," "the one whose shoe was removed," "the one whose shoe was removed," three times.When this act was performed before us, we granted license for so and so to marry whomever she desires; no man has the right to raise a protest from this day onward.So and so made a request for a legal record of this chalitzah. [Hence,] we wrote it up, signed it and gave to her as proof according to the faith of Moses and Israel.Signed so and so the son of so and so, a witness;so and so the son of so and so, a witness.95 We have included these lines based on the standard printed texts of the Mishneh Torah, although it is highly likely that they are a printer's addition. They are not found in most early manuscripts and printings. Moreover, it is likely that they are a later printer's addition because the Rambam does not mention witnesses signing this document, but

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PARSHAT BERESHIT

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rather only the judges who presided over the chalitzah.

Halachah 31

וּמְעִידִין עָלָיו שְׁלֹשָׁה אוֹ שְׁנַיִם מִן הַשְּׁלֹשָׁה אוֹ שְׁנַיִם שֶׁרָאוּ הַחֲלִיצָה אַף עַל פִּי שֶׁאֵינָן הַדַּיָּנִין שֶׁחָלְצָה בִּפְנֵיהֶן כְּמוֹ שֶׁבֵּאַרְנוּ. וַאֲפִלּוּ אִשָּׁה אוֹ עֶבֶד אוֹ קָטָן שֶׁהוּא מַכִּיר וְנָבוֹן נֶאֱמָנִין לוֹמַר זֶה פִּלּוֹנִי אָחִי פִּלּוֹנִי וְזוֹ הִיא יְבִמְתּוֹ וְחוֹלְצִין עַל פִּיהֶן. מַה שֶּׁאֵין כֵּן בִּשְׁאָר עֵדִיּוֹת שֶׁל תּוֹרָה בֵּין לְעֵדוּת מָמוֹן בֵּין לְעֵדוּת אִסּוּר. שֶׁזֶּה דָּבָר הֶעָשׂוּי לְהִגָּלוֹת הוּא אֶפְשָׁר לֵידַע אֲמִתַּת הַדָּבָר שֶׁלֹּא מִפִּיהֶן כְּעִנְיָן שֶׁבֵּאַרְנוּ בְּסוֹף הִלְכוֹת גֵּרוּשִׁין. וְאִם רָצָה הַיָּבָם לְיַבֵּם מְקַדֵּשׁ וּמְיַבֵּם וְכוֹתֵב לָהּ כְּתֻבָּה כְּמוֹ שֶׁהוֹדַעְנוּ׃

The three judges, two of the three judges, or two other individuals who witnessed the chalitzah, but who did not serve as the judges presiding over the chalitzah, may testify concerning the matter, as we have explained.96 See Halachah 29.Even [the testimony of] a woman, a servant or a minor who is perceptive and understanding is accepted if they say that "This is so and so, the brother of so and so, and this is his yevamah." We may then perform chalitzah on this basis. This does not apply with regard to other forms of testimony required by the Torah - neither testimony required in questions of monetary law nor testimony required with regard to prohibitions.[The rationale for this distinction is that this is a matter that will likely be revealed, and it is possible to know the truth of the matter without relying on their testimony, as we have explained at the conclusion of Hilchot Gittin.97 The Rambam concludes Hilchot Gerushin by stating:Do not wonder at the fact that our Sages released the prohibition [against a married woman], which is considered a very severe matter, on the basis of the testimony of a woman, a servant or a maid servant, statements made by a gentile in the course of conversation, a written statement, or [testimony] that was not investigated by the ordinary process of interrogation, as we have explained.[These leniencies were instituted] because the Torah required the testimony of two witnesses, and all the other details of the laws of witnesses only with regard to matters that cannot be verified definitively except via witnesses and their testimony - e.g., that one person killed another, or that one person lent money to another. When, by contrast, the matter can be verified definitively without the testimony of a witness, and the witness cannot justify [his statements] if they are not true - e.g., when one testifies that a person died, the Torah did not necessitate [that the requirements of formal testimony be met in these instances]. For it is unlikely that a witness will testify falsely.As interpreted by the Noda BiY'hudah (Even HaEzer, Volume I, Responsa 27 and 33), the Rambam's statement implies that since the matter will ultimately become public knowledge, no formal testimony is required, and the statements of an individual who witnessed the matter himself are sufficient to be accepted.If the yavam desires to perform yibbum, he should consecrate her, perform yibbum and write her a ketubah, as we have explained.98 See Chapter 2, Halachah 2; Hilchot Ishut 22:14.

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PARSHAT BERESHIT

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Thursday, 8 October 2026 · Aliyah 5/7 (Genesis 4:19-4:22) · Daf Bekhorot 20

Halachah 32

וזהו נוסח כתובת יבמין שנהגו העם: בְּיוֹם פְּלוֹנִי כָּךְ וְכָךְ לְיֶרַח פְּלוֹנִי שְׁנַת כָּךְ וְכָךְ לְמִנְיַן פְּלוֹנִי לְמִנְיָנָא דְּרָגִילְנָא לְמִימְנֵי בְּמָקוֹם פְּלוֹנִי אֵיךְ פְּלוֹנִי בֶּן פְּלוֹנִי אָתָא לָקֳדָמָנָא וְכֵן אָמַר לָנָא. אָחִי דִּמִן אַבָּא שָׁכִיב וְחַיֵּי לְרַבָּנָן וּלְכָל יִשְׂרָאֵל שָׁבַק. וּבַר וּבְרַת יָרִית וּמַחְסִין וּמוֹקִים שְׁמָא בְּיִשְׂרָאֵל לֹא שָׁבַק. וְשָׁבַק הַהִיא אִתְּתָא דִּשְׁמָהּ פְּלוֹנִית בַּת פְּלוֹנִי וְחָזֵי לִי מִן אוֹרַיְתָא לְיִבּוּמֵי יָתָהּ כְּדִכְתִיב בְּסֵפֶר אוֹרַיְתָא דְּמשֶׁה יְבָמָהּ יָבֹא עָלֶיהָ. וּצְבִיאַת פְּלוֹנִית דָּא וְאִתְיַבְּמַת לְפְלוֹנִי בַּר פְּלוֹנִי יְבָמָהּ לְאוֹקוּמֵי שְׁמָא בְּיִשְׂרָאֵל כְּדִכְתִיב וְהָיָה הַבְּכוֹר אֲשֶׁר תֵּלֵד יָקוּם עַל שֵׁם אָחִיו הַמֵּת וְגוֹ'. וְכָתַב לָהּ פְּלוֹנִי יְבָמָהּ לְפְלוֹנִית יְבִמְתֵּיהּ כֶּסֶף זוּזֵי מָאתָן דְּחָזוּ לָהּ דַּהֲווּ כְּתִיבִין בִּכְתֻבָּתָהּ דְּכָתַב לָהּ בַּעְלָהּ קַדְמָאָה וְאוֹסִיף לָהּ מִדִּילֵיהּ כָּךְ וְכָךְ וְדָא נְדוּנְיָא דְּהַנְעָלַת לֵיהּ וְכוּ' כִּשְׁאָר טָפְסֵי כְּתֻבּוֹת:

On this day of the week and on this day of the month, in this year according to the reckoning that is followed in this and this place, [we the undersigned testify] that so and so, the son of so and so, appeared before us and told us: "My paternal brother died, leaving life to the Sages and to all of Israel. He did not leave a son or a daughter to inherit him and to perpetuate his name within Israel. He did, however, leave a woman so and so, the daughter of so and so. According to the Torah, she is fit to perform yibbum with me, as it is written in the Torah scroll of Moses: 'A yavam will engage in relations with her.' This woman consented and performed yibbum with so and so, the son of so and so, her yavam, to perpetuate [her deceased husband's] name within Israel, as it is written: "The first-born that she bears will arise in the name of his brother who is deceased."99 It appears in this context that the Rambam is referring to the literal meaning of the verse and not the halachic meaning, as stated in Chapter 2, Halachah 6.So and so, the yavam, has written [a marriage contract for] two hundred silver zuzim, as befits her, as was written in the marriage contract written to her by her first husband,100 This refers to an instance where the woman was a virgin when she married her first husband. Since she did not collect her due from her first husband, she is still entitled to a marriage contract of two hundred zuz. Otherwise, she would be granted only one hundred zuz, as is granted to other widows. and he adds to this pledge from his own resources this and this amount. This is the dowry with which she entered the household... [continuing as in] the ordinary text of a ketubah.

Halachah 33

טופס הכתובה: בְּיוֹם פְּלוֹנִי כו'. אֵיךְ פְּלוֹנִי בֶּן פְּלוֹנִי אָמַר לִפְלוֹנִית בַּת פְּלוֹנִי בְּתֻלְתָּא כַּלָּתָא הֲוִי לִי לְאִנְתּוּ כְּדַת משֶׁה וְיִשְׂרָאֵל וַאֲנָא בְּמֵימַר דִּשְׁמַיָּא אֶפְלַח וְאוֹקִיר וַאֲסוֹבַר וְאֵיזוּן וַאֲפַרְנֵס וְאֶכְסֵי יָתִיכִי כְּהִלְכוֹת גֶּבְרִין יְהוּדָאִין דְּמוֹקְרִין וּמְסוֹבְרִין וְזָנִין וּמְפַרְנְסִין וּמְכַסְּיִן יָת נְשֵׁיהוֹן בְּקִשְׁטָא. וְיָהִיבְנָא לֵיכִי מֹהַר בְּתֻלֵּיכִי כֶּסֶף זוּזֵי מָאתָן דְּאִינּוּן מְזוּזֵי כַּסְפָּא כ"ה דְּחָזוּ לֵיכִי מִדְּאוֹרַיְתָא וּמְזוֹנַיְכִי וּכְסוּתַיְכִי וְסִפּוּקַיְכִי. וּמֵעַל עָלַיְכִי כְּאַרְח כָּל אַרְעָא. וּצְבִיאַת פְּלוֹנִית דָּא וַהֲוַת לֵיהּ לְאִנְתּוּ לִפְלוֹנִי דְּנָא. וְרָצָה וְהוֹסִיף לָהּ תּוֹסֶפֶת עַל עִקַּר כְּתֻבָּתָהּ עַד מִשְׁלַם כָּךְ וְכָךְ וְדָא נְדוּנְיָא דְּהַנְעָלַת לֵיהּ כָּךְ וְכָךְ הַכֹּל

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

PARSHAT BERESHIT

When is a minority worth worrying about? — Bekhorot 20, the beehive's shadow, and Solomon's asking heart

Thursday, 8 October 2026 · Aliyah 5/7 (Genesis 4:19-4:22) · Daf Bekhorot 20

נִתְקַבֵּל חָתָן זֶה וּבָא לְיָדוֹ וְנַעֲשֶׂה בִּרְשׁוּתוֹ וְזָקַף הַכֹּל עַל עַצְמוֹ כִּמְלֻוֶּה וּרְשׁוּ. וְכֵן אָמַר לָנָא פְּלוֹנִי חֲתָנָא דְּנָא אַחֲרָיוּת כְּתֻבְתָּא כֹּלָא עִקַּר כְּתֻבָּה וּנְדוּנְיָא וְתוֹסֶפֶת וּשְׁאָר תְּנָאֵי כְּתֻבָּה קַבָּלִית עָלַי וְעַל יְרָתַי בַּתְרָאֵי וְעַל כָּל שִׁפַּר אֲרַג נְכְסִין וְקִנְיָנִין דְּאִית לִי תְּחוֹת [כָּל] שְׁמַיָּא דְּקַנָּאֵי וּדְעָתִיד אֲנָא לְמִיקְנֵה מִמְּקַרְקְעֵי וּמִמְּטַלְטְלֵי אַגַּב מְקַרְקְעֵי כֻּלְּהוֹן יְהוֹן אַחְרָאִין וְעַרְבָאִין לִכְתֻבָּה דָּא כֹּלָא עִקַּר וּנְדוּנְיָא וְתוֹסֶפֶת לְאִתְפָּרְעָא מִנְּהוֹן בְּחַיֵּי וּבָתַר מוֹתִי וַאֲפִלּוּ מִגְּלִימָא דְּעַל כַּתְפָּאי. וְקִנְיָנָן מְפַלּוֹנִי דָּא מִכָּל מַאי דְּכִתִיב וּמְפָרַשׁ לְעֵילָא קִנְיָן שְׁלֵם דְּלָא כְּאַסְמַכְתָּא וּדְלָא כְּטוֹפְסָא דִּשְׁטָרֵי אֶלָּא כְּחָזָק וּכְחֹמֶר כָּל שִׁטְרֵי כְּתֻבּוֹת הַגּוֹיִם בְּיִשְׂרָאֵל וְכַהֶגֶן וּכְתִקּוּן רַבּוֹתֵינוּ זַ"ל וְחָתַמְנוּ עַל שְׁטַר כְּתֻבָּה זוֹ בַּזְּמַן הַנִּזְכָּר לְעֵיל וְהַכֹּל בָּרִיר וְשָׁרִיר וְקַיָּם:

33 On this day of the week..., [we the undersigned testify] that so and so, the son of so and so, told so and so, the daughter of so and so, a virgin bride: "Become my wife according to the faith of Moses and the Jewish people. And I, with the help of God, will work to honor you, sustain you, nourish you, provide for you and clothe you according to the custom of Jewish men who faithfully honor, sustain, nurture, provide for and clothe their wives."And as a dowry fit for a virgin, I will give you 200 silver zuzim, which are equivalent to 25 zuzim of [pure] silver,102 For the coins of the Talmudic era were one part silver and seven parts base metal (Hilchot Ishut 10:8). which are fit for you according to the Torah,103 Based on Hilchot Ishut (ibid.), this phrase appears to be a printer's addition, for the Rambam considers the commitment to this sum to be a Rabbinic ordinance. It is lacking in many authoritative printings and manuscripts of the Mishneh Torah. According to Ashkenazic custom, the phrase should be included in the ketubah. your sustenance, your clothing and your other needs, and I will give you conjugal rights."104 This conveys a man's pledge to give his wife sha'arah (her sustenance), kesutah (her clothing) and onatah (her conjugal rights). These constitute a man's fundamental obligations in marriage, as stated in Exodus 21:10. (See also Sefer HaMitzvot, Negative Commandment 262; Hilchot Ishut 12:2.)So and so agreed and became the wife of so and so. He consented and added to the essential requirement of the marriage contract, reaching a total sum of such and such. This is the sum of the value of the dowry that she brought to the household, such and such. The groom received this entire amount. It entered his domain and came under his jurisdiction, and he accepted responsibility for the entire amount as a loan and a debt.Similarly, the groom has told us, "I accept responsibility for the entire [sum mentioned in] this marriage contract: the essential requirement of the marriage contract, the dowry, the additional amount, and all the stipulations of the marriage contract.105 I.e., to provide his wife with her provisions and clothing."[This responsibility I accept upon myself,] my heirs and on all the valuable and desirable property and assets that I own beneath the heavens. [This includes] those that I already own and those that I will acquire and includes landed property and movable property that is acquired via the acquisition of landed property. All of them will be liable and accountable for the entire sum of this marriage contract: the essential requirement of

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the marriage contract, the dowry and the additions that payment be made from them in my lifetime and after my death, including even the cloak I wear on my shoulders."We have formalized all that is written and explicitly stated above with a comprehensive kinyan.106 I.e., a kinyan sudar, the exchange of a handkerchief that serves to formalize the acquisition of property, or the establishment of a binding contractual agreement. It should not be considered as an asmachta107 An agreement made facetiously, without the desire to keep it. or as a sample text for legal documents that is not binding. Instead, it is binding with all the power and rigor of marriage contracts that are customarily accepted among the Jewish people, as ordained by our Rabbis of blessed memory. We signed this marriage contract on the date mentioned above. Everything is clear, forceful and viable.

Halachah 34

וְאִם הָיְתָה כְּתֻבַּת אַלְמָנָה כּוֹתֵב פְּלוֹנִית אַלְמָנָתָא. וְאִם הָיְתָה כְּתֻבַּת גְּרוּשָׁה כּוֹתֵב פְּלוֹנִית הַגְּרוּשָׁה. וְכֵן אִם הָיְתָה שְׁבוּיָה כּוֹתֵב פְּלוֹנִית הַשְּׁבוּיָה כְּדֵי שֶׁלֹּא יִכָּשֵׁל בָּהּ כֹּהֵן. וְכוֹתֵב וְיָהִיבְנָא לֵיכִי מֹהַרַיְכִי כֶּסֶף זוּזֵי מֵאָה דְּאִינּוּן מְזוּזֵי כַּסְפָּא תְּרֵיסַר וּפַלְגָּא דְּחָזוּ לֵיכִי וְכוּ':

If the marriage contract is written for a widow, it should mention [the woman's name as] "so and so, the widow."108 The essential requirement of the marriage contract of a widow is only one hundred zuzim. In order to explain this reduction, the marriage contract mentions her status. If the marriage contract is written for a divorcee, it should mention [the woman's name as] "so and so, the divorcee."109 This is necessary for the reasons mentioned previously and also to identify the woman as being forbidden to the priesthood. Even if this husband leaves her a widow, she may not marry a priest, because of her previous divorce. Similarly, if she had been taken captive [by gentiles], one should write "so and so, who was taken captive," so that a priest will not err [and marry] her.110 Such a woman is forbidden to the priesthood, as stated in Hilchot Issurei Bi'ah 18:17.[In these instances,] it is written: "And as a dowry, I will give you 100 silver zuzim, which are equivalent to 12 1/2 zuzim of [pure] silver, which are fit for you...."111 If a woman had engaged in sexual relations previously outside the context of marriage, she should also be given a ketubah of this amount according to many authorities. Others maintain that she should be given the amount usually given to a virgin bride, so that she will not be publicly embarrassed. Others differentiate between a woman who had relations only with her prospective husband (in which case, the second ruling is followed) and one who had relations with others (in which case the first ruling is followed).

Halachah 35

כְּשֶׁכּוֹתְבִין גֵּט יְבָמִין אוֹ כְּתֻבַּת יְבָמִין מְשַׂרְטֵט מְקוֹם הַפְּסוּקִים. שֶׁאָסוּר לִכְתֹּב שָׁלֹשׁ תֵּבוֹת בְּלֹא שִׂרְטוּט. וְיִבָּמָה שֶׁחָלְצָה מֻתֶּרֶת לְהִנָּשֵׂא בְּיוֹם חֲלִיצָתָהּ שֶׁהֲרֵי אֵינָהּ חוֹלֶצֶת עַד שֶׁתַּשְׁלִים תִּשְׁעִים

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

PARSHAT BERESHIT

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יוֹם:

When a legal record of the chalitzah or a ketubah for a yevamah is written, the place where the verses [from the Torah] are written should be ruled with a stylus, for it is forbidden to write three words [from the Torah] without ruling [the surface on which one writes].112 The commentaries note the apparent contradiction between the Rambam's ruling here [which is also reflected in his Commentary on the Mishnah (Sotah 2:4)], and his ruling in Hilchot Sefer Torah 7:16, where he states that one may write three words, but not four, without ruling the writing surface. The Maggid Mishneh notes that both of these opinions have their source in Megillah 7b. He and other commentaries discuss this issue in Hilchot Sefer Torah.The contradiction was brought to the attention of the Rambam's grandson, Rabbi Yehoshua, who states that the ruling in Hilchot Sefer Torah should be followed, since there the subject is given full focus, while in Hilchot Yibbum the matter is mentioned tangentially. Significantly, however, the Shulchan Aruch (Yoreh De'ah 284:2) differs and follows the more stringent view.A yevamah who performs chalitzah is permitted to marry on the same day on which she performed chalitzah, for she should not perform chalitzah until 90 days have passed [since her husband's death].113 See Chapter 1, Halachah 19.

Commentary

Chapter 4 of the laws of levirate marriage and release is כיצד מצות חליצה — the full staging of the ceremony, in thirty-five halachot. The Rambam builds it like a director: first the counsel (hal. 1 — the judges advise the yavam to marry or to release her depending on the fit, 'לו ולה עצה ההוגנת,' the law's pastoral opening), then the fixed venue (2), then the rehearsal — both parties drilled to recite until fluent, the yevamah trained to say 'לא אבה' and 'יבמי' in a single breath, lest the pause slip and her words sound like 'אבה יבמי,' he desired my yavam (3–4). Then the court: three men who know how to prompt (5), the leather shoe with a heel, tied on the right foot (6), the declarations, the spitting, the shoe-removal (7–9).

And then the Rambam's striking halakhic move: אין הסדר מעכב — the order is not essential (10). She spat and then removed the shoe, or recited and then spat; they were sitting or reclining; the shoe's strap was tied below the knee; the three judges were ignoramuses who couldn't prompt — the chalitzah is still valid (10, 15). The ceremony's dignity is in its choreography, but its legal force is in its core acts. The chapter then catalogs the materials (20 — the tzara'at-suspect sandal, the idolatrous sandal), the coerced chalitzah and the modaa protest that voids it, mirroring the laws of divorce (25), the formal document's Aramaic text (30), and closes with the scribe's rules and the ninety-day wait (35).

The commentators do what they always do, each in his register. Maggid Mishneh is the source-tracer: 'היבמה הולכת אחר היבם' — the yevamah follows the yavam — is Sanhedrin 31b; the prompting is the mishna and baraita of Yevamot 106b; the Hebrew-language requirement is Sotah 33b ('בלשון הקדש,' traced by Migdal Oz alongside Yevamot 101 and

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PARSHAT BERESHIT

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107). Every ruling in the chapter has a Talmudic address, and the Maggid Mishneh names it. The gem of the chapter is halakha 3's one-breath rule: halakhah's ear is so fine that a pause between two words can turn refusal into desire, and the whole ceremony is rehearsed to keep the meaning from slipping.

Commentary texts fetched from Sefaria: Maggid Mishneh and Migdal Oz (Ohr Sameach and Kessef Mishneh have no text for this chapter on Sefaria — omitted rather than reconstructed).

NLI ·

From minority halakhah to minority government

The National Library's archive holds a political poster from the Barak era bluntly titled 'ממשלת מיעוט' — 'Minority Government' — attacking Ehud Barak's coalition as sustained by Arab votes ('נשען על ערבים שונאי ישראל'). It is the modern afterlife of today's daf word: מיעוט, which the daf weighs as a legal quantity (must we be concerned for the minority?), reappears here as a political identity — the minority as a bloc to be courted, counted, or feared. The archive's catalog page carries the record; no image is reproduced here because the item's license could not be verified this morning.

ממשלת מיעוט. · c. 1999–2000
https://www.nli.org.il/en/archives/NNL_ARCHIVE_AL997012157054805171

SHNAYIM MIKRA · ALIYAH 5

Genesis 4:19-4:22

The shnayim mikra practice — each verse twice in Hebrew, once in the Targum — slows the reader down to the pace of the text itself. Today's aliyah is the family register of Lamech, seventh from Adam: his two wives, Adah and Zillah, and the three sons who invent civilization's crafts — Jabal, father of tent-dwelling herders; Jubal, father of musicians; Tubal-cain, forger of bronze and iron — with their sister Naamah named and unexplained.

עדה
ושם
ושום

Genesis 4:19 · ×2

וַיִּקַּח־לוֹ לֶמֶךְ שְׁתֵּי נָשִׁים שֵׁם הָאַחַת עָדָה וְשֵׁם הַשֵּׁנִית צִלָּה׃
וַיִּקַּח־לוֹ לֶמֶךְ שְׁתֵּי נָשִׁים שֵׁם הָאַחַת עָדָה וְשֵׁם הַשֵּׁנִית צִלָּה׃
וּנְסִיב לֵהּ לֶמֶךְ תַּרְתֵּין נְשִׁין שׁוּם חֲדָא עָדָה וְשׁוּם תִּנְיָתָא צִלָּה׃

היה
רבהון

Genesis 4:20 · ×2

וַתֵּלֶד עָדָה אֶת־יָבֶל הוּא הָיָה אֲבִי יֹשֵׁב אֹהֶל וּמִקְנֶה׃
וַתֵּלֶד עָדָה אֶת־יָבֶל הוּא הָיָה אֲבִי יֹשֵׁב אֹהֶל וּמִקְנֶה׃
וְיֵלֶידַת עָדָה יָת יָבָל הוּא הֲוָה רַבְּהוֹן דְּיָתְבֵי מַשְׁכְּנִין וּמָרֵי בְּעִיר׃

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DAILY READER

PARSHAT BERESHIT

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Genesis 4:21 · ×2

וְשֵׁם אָחִיו יוּבָל הוּא הָיָה אֲבִי כָּל־תֹּפֵשׂ כִּנּוֹר וְעוּגָב׃
וְשֵׁם אָחִיו יוּבָל הוּא הָיָה אֲבִי כָּל־תֹּפֵשׂ כִּנּוֹר וְעוּגָב׃
וְשׁוּם אָחוֹהִי יוּבָל הוּא הֲוָה רַבְּהוֹן דְּכָל דְּמְנַגֵּן עַל פּוּם נִבְלָא יְדֵעִי זְמַר כִּנּוֹרָא וְאַבּוּבָא׃

Genesis 4:22 · ×2

וְצִלָּה גַם־הִוא יָלְדָה אֶת־תּוּבַל קַיִן לֹטֵשׁ כָּל־חֹרֵשׁ נְחֹשֶׁת וּבַרְזֶל וַאֲחוֹת תּוּבַל־קַיִן נַעֲמָה׃
וְצִלָּה גַם־הִוא יָלְדָה אֶת־תּוּבַל קַיִן לֹטֵשׁ כָּל־חֹרֵשׁ נְחֹשֶׁת וּבַרְזֶל וַאֲחוֹת תּוּבַל־קַיִן נַעֲמָה׃
וְצִלָּה אַף הִיא יְלִידַת יָת תּוּבַל קַיִן רַבְּהוֹן דְּכָל דְּיָדְעֵי עִבִידַת נְחָשָׁא וּפַרְזְלָא וַאֲחָתֵהּ דְּתוּבַל קַיִן נַעֲמָה׃

Commentary quick hits

Shadal · Gen 4:20

These inventors of crafts were worshipped as gods in those days — so the Torah tells us 'they were men, and who their father was.' The genealogy is an anti-idolatry polemic: Jabal and Jubal get a father, not a cult.

Ibn Ezra · Gen 4:19

Do not listen to the Gaon's etymologies of these names: even if we knew all of the holy tongue, we could not know all the circumstances behind a name — like Moses, like Issachar. A methodological warning against over-confident name-derivation.

Cassuto · Gen 4:20

Jabal, Jubal, and Tubal all derive from one root — יבל — hinting at the יבול, the produce yielded by their inventions; and each name also echoes Cain, their forefather (קינה as poetic creation; תובלקין bearing Cain's name outright).

HaKtav VeHaKabalah · Gen 4:19

Adah and Zillah are not birth names but nicknames: Adah is 'the pregnant one' — from Aramaic עדוי (cf. the Targum's ועדוייך for 'your pregnancy') — the wife taken for procreation, set apart and bereaved.

Netinah LaGer · Gen 4:21

Onkelos's rendering of 'father of all who grasp lyre and pipe' visibly weaves two interpretations together — the instrumentalist who plays, and the singer who knows the song. A translation that refuses to choose.

Onkelos: translation notes

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Gen 4:20

רבהון דיתבי משכנין ומרי בעיר אבי ישב אהל ומקנה

Onkelos's signature move in this aliyah: אבי ('father of') becomes רבהון — 'their master.' The craft-founder is not a father but a chief; the genealogy is de-genealogized into a guild. מקנה becomes מרי בעיר, owners of cattle.

Gen 4:21

רבהון דכל דמנגן על פום נבלא ידעי זמר כנורא ואבובא אבי כלתפש כנור ועוגב

Again רבהון for אבי — and a paraphrastic expansion: the terse 'all who grasp lyre and pipe' becomes 'all who play at the mouth of the nevel, knowers of the song of kinnor and abuv.' Netinah LaGer hears two interpretations woven into the one rendering — the instrumentalist and the singer.

Gen 4:22

רבהון דכל דידעי עיבידת נחשא ופרזלא לטש כלחרש נחשת וברזל

The third רבהון completes the pattern: every 'father of' a craft in this aliyah is a 'master of' those who know the work. Onkelos will not let the inventor be called a father — mastery, not paternity, is the relationship between a man and his craft.

Gen 4:20

הוא הוה הוא היה

The Hebrew היה is rendered with the Aramaic root הוה — the same root whose af'el means 'to create.' The humblest copula in Aramaic carries the weight of bringing-into-being.

Gen 4:19

שום חדא עדה שם האחת עדה

שם becomes שום — the Aramaic form of 'name' — while the proper names Adah and Zillah pass through unchanged, as names always do in the Targum.

Gen 4:22

וצלה אף היא ילידת וצלה גם־הוא ילדה

גם־הוא becomes אף היא — Onkelos's regular Aramaic equivalent — and ותלד is rendered with the pa'el ילידת, the causative stem that marks the act of bringing forth.

Gen 4:19

ונסיב לה למך תרתין נשין ויקחלו למך שתי נשים

The Hebrew idiom 'he took for himself' is recast in the Aramaic idiom ונסיב — 'he married' — the standard Targum rendering of marital לקיחה, with the dual תרתין for שתי.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Gen 4:21

ושום אחוהי יובל ושם אחיו יובל

A quiet disambiguation by context: שם here is unambiguously 'name' (rendered שום), not the homograph שם ('there') — the Targum's rendering settles what the consonantal text leaves open.

RASHI

Rashi on the day's aliyah

All eight of Rashi's comments on Genesis 4:19–22, in full — Hebrew and English — from Sefaria. Four comments cluster on verse 19 (Lamech's two wives) and four on verses 20–22 (the inventors and Naamah).

ויקח לו למך.

לֹא הָיָה לוֹ לְפָרֵשׁ כָּל זֶה, אֶלָּא לְלַמְּדֵנוּ מִסּוֹף הָעִנְיָן,

שֶׁקִּיֵּם הַקָּבָ"ה הַבְטָחָתוֹ שֶׁאָמַר שִׁבְעָתַיִם יֻקַּם קָיִן,

> ויקח לו למך *AND LAMECH TOOK UNTO HIMSELF — It would not have been necessary to state all this in detail except to inform us by the conclusion of the narrative that the Holy One, blessed be He, kept the promise He made when He said,* שבעתים יקם קין *"vengeance shall be taken of Cain after seven generations";*

עָמַד לֶמֶךְ לְאַחַר שֶׁהוֹלִיד בָּנִים וְעָשָׂה דּוֹר שְׁבִיעִי וְהָרַג אֶת קָיִן,

> *for Lamech arose after he had begotten children and had raised the seventh generation and killed Cain.*

זֶהוּ שֶׁאָמַר כִּי אִישׁ הָרַגְתִּי לְפִצְעִי וְגוֹמֵר:

> *It is to this that the statement refers:* כי איש הרגתי לפצעי וגו *"for I have slain a man to my wounding etc." (v. 23).*

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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שתי נשים.

כָּךְ הָיָה דַּרְכָּן שֶׁל דּוֹר הַמַּבּוּל אַחַת לִפְרִיָּה וּרְבִיָּה וְאַחַת לְתַשְׁמִישׁ,

זוֹ שֶׁהִיא לְתַשְׁמִישׁ מַשְׁקֶה כּוֹס שֶׁל עִקָּרִין כְּדֵי שֶׁתִּתְעַקֵּר וּמְקֻשָּׁטֶת כְּכַלָּה וּמַאֲכִילָהּ מַעֲדַנִּים,

שתי נשים *TWO WIVES — This was the custom of the generation that lived before the time of the Flood;*

וַחֲבֶרְתָּהּ נְזוּפָה וַאֲבֵלָה כְּאַלְמָנָה,

they had two wives, one for child-bearing, the other for frivolous companionship and charm;

וְזֶהוּ שֶׁפֵּרֵשׁ אִיּוֹב רֹעֶה עֲקָרָה לֹא תֵלֵד וְאַלְמָנָה לֹא יֵיטִיב (איוב כ"ד),

the latter was given a cup of some drug to drink in order that she might become barren, and was dressed up like a bride and fed with the best food, whilst her fellow-wife was left without her husband's companionship and ever mourned like a widow.

כְּמוֹ שֶׁמְּפֹרָשׁ בְּאַגָּדַת חֵלֶק (וּבְבָ"ר):

Job expressly mentions this (Job 24:21). "He is a companion to (or, he feedeth) the barren that beareth not, and does not good to the widow", as it is explained in the Agada of Pereq Chelek (see also Genesis Rabbah 23:2).

עדה.

הִיא שֶׁל פְּרִיָּה וּרְבִיָּה עַל שֵׁם שֶׁמְּגֻנָּה עָלָיו וּמוּסֶרֶת מֵאֶצְלוֹ, עָדָה תַּרְגּוּם שֶׁל סוּרָה:

עדה *ADAH — She was the wife intended for propagation, and she was so named because she was repulsive to him and was kept aloof from him [other versions read "from his table "] for* עדה *is the Aramaic word for* סורה *kept aloof."*

צלה.

הִיא שֶׁל תַּשְׁמִישׁ, עַל שֵׁם שֶׁיּוֹשֶׁבֶת תָּמִיד בְּצִלּוֹ, דִּבְרֵי אַגָּדָה הֵם בְּבָ"ר:

צלה *ZILLAH — She was the one for companionship alone, and she was so named because she always abided in his shadow (*צל *means "shadow").*

Thus is the statement of the Agada in Genesis Rabbah 23:2).

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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אבי ישב אהל ומקנה.

הוּא הָיָה הָרִאשׁוֹן לְרוֹעֵי בְהֵמוֹת בַּמִּדְבָּרוֹת,

יוֹשֵׁב אֹהָלִים חֹדֶשׁ כָּאן וְחֹדֶשׁ כָּאן בִּשְׁבִיל מִרְעֶה צֹאנוֹ,

אבי יושב אהל ומקנה *THE FATHER OF SUCH AS ABIDE IN TENTS AND OF SUCH THAT HAVE CATTLE — He was the first of those who pastured cattle, and he dwelt in tents, a month here and a month there, on account of the pasture necessary for his sheep;*

וּכְשֶׁכָּלְתָה הַמִּרְעֶה בְּמָקוֹם זֶה הוֹלֵךְ וְתוֹקֵעַ אָהֳלוֹ בְּמָקוֹם אַחֵר. וּמִדְרַשׁ אַגָּדָה בּוֹנֶה בָתִּים לַעֲ"ז,

for when the grass was finished in one place he went away and pitched his tent in another place.

כְּמָה דְּאַתְּ אָמַר סֵמֶל הַקִּנְאָה הַמַּקְנֶה (יחזקאל ח'),

There is a Midrashic statement (Genesis Rabbah 23:3) that he built temples for idol worship, (for ומקנה *may be read* ומקנה *— provoking jealousy), just as you say, (Ezekiel 8:3) "the image of jealousy which provoketh God to jealousy" (*המקנה*);*

וְכֵן אָחִיו תּוֹפֵשׂ כִּנּוֹר וְעוּגָב לְזַמֵּר לַעֲ"ז:

similarly his brother handled the harp and guitar to make music for idol worship.

תובל קין.

תּוּבַל אֻמָּנָתוֹ שֶׁל קַיִן, תִּיבֵּל לְשׁוֹן תַּבְלִין,

תובל קין *TUBAL-CAIN — He refined Cain's handicraft.*

תִּבֵּל וְהִתְקִין אֻמָּנוּתוֹ שֶׁל קַיִן לַעֲשׂוֹת כְּלֵי זַיִן לְרוֹצְחִים:

The word תובל *is connected in meaning with* תבלין *(spices which give a refined and improved taste to food);*

he refined and improved the work of Cain by providing weapons for murderers (Genesis Rabbah 23:3).

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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לטש כל חרש נחשת וברזל.
מְחַדֵּד אֻמָּנוּת נְחֹשֶׁת וּבַרְזֶל כְּמוֹ יִלְטֹשׁ עֵינָיו לִי (איוב ט"ז).

חוֹרֵשׁ אֵינוֹ לְשׁוֹן פֹּעֵל אֶלָּא לְשׁוֹן פּוֹעֵל,

שֶׁהֲרֵי נָקוּד קָמָץ קָטָן וְטַעְמוֹ לְמַטָּה, כְּלוֹמַר,

מְחַדֵּד וּמְצַחְצֵחַ כָּל כְּלֵי אֻמָּנוּת נְחֹשֶׁת וּבַרְזֶל:

לטש כל חרש נחשת וברזל *THE FORGER OF EVERY CUTTING INSTRUMENT OF BRASS AND IRON — He sharpened tools used in brass and iron work;* לוטש *has the some meaning as (Job 16:9)* ילטוש *"He sharpeneth his eye upon me." The word* חרש *is not of the form* פעל *(a noun like* אהל, אכל *etc.), but of the form* פועל *(a participle), for it has the vowel* קמץ קטן *(what we term* צירה*) and its accent is on the last syllabic (whereas the noun form has the accent on the first syllable, and the second has a Segol, like* קדש*), and the meaning is that he sharpened and polished all cutting implements (*כל חרש*) used in work of brass and iron.*

נעמה.
הִיא אִשְׁתּוֹ שֶׁל נֹחַ:

נעמה *NAAMAH — She was Noah's wife (Genesis Rabbah 23:3).*

HOW RASHI USES HIS SOURCES

The Flood generation's two wives

The spotlight comments on verse 19 (צלה, עדה, שתי נשים, ויקח לו למך) all draw on one aggadic source: Bereshit Rabbah 23:2, with Job 24:21 as its prooftext. Rashi imports the midrash nearly whole: 'אחת לפריה ורביה ואחת לתשמיש — כך היה דרכן של דור המבול' — this was the way of the generation of the Flood: one wife for procreation, one for pleasure. The pleasure-wife was given a cup of sterilizing herbs (כוס של עיקרין), dressed as a bride, fed delicacies; her fellow was 'נזופה ואבלה כאלמנה' — scolded and mournful like a widow. That, says the midrash, is what Job meant: 'רעה עקרה לא תלד ואלמנה לא ייטיב' — he pastures the barren who does not bear, and does no good to the widow.

Rashi then turns etymologist on the two names, and here he is not quoting but compressing: עדה — 'על שם שמגונה עליו ומוסרת מאצלו, היא של פריה ורביה' — she is the one for procreation, named for being despised by him and withdrawing from him; צלה — 'בצלו, היא של תשמיש' — she is the one for pleasure, named for always sitting in his shadow. The midrash supplies the sociology; Rashi supplies the onomastics. And the opening comment (ויקח לו למך) shows Rashi's other mode — the peshat pivot: the Torah would not have detailed all this except 'ללמדנו מסוף הענין' — to teach us from the story's end — that אלקים kept His promise that Cain would be avenged sevenfold, when Lamech, seventh generation, killed him.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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WORD STUDIES

Three words from the aliyah

Three load-bearing words from Genesis 4:19–22, each with a journey. Lexicon data: Klein and Jastrow via Sefaria. (Note: the Comprehensive Aramaic Lexicon prohibits scraping, so Aramaic coverage here is Jastrow and BDB via Sefaria.)

עֵדָה I

Jastrow · עדה I

f.

— [appointed meeting,] assembly, congregation; court; prayer meeting. Tosef. Snh. XII, 3 (ref. to Ex. XXI, 18) מה אגרוף הידוע לע' ילעדים וכ' as the fist (of the slayer) is ascertained before court and witnesses, so must th

Jastrow · *עדה II

f.

— = עדות, testimony. Tosef. Bekh. III, 8 שכר עדתו ed. Zuck. (oth. ed. עדותו) pay for his testimony.—Pl. עדות. Bekh. IV, 6 (29[a]) עדותיו בטילין masc. (Var. in Mish. ed. עדותו בטילה) his testimonies are void; (Kidd.

Jastrow · עדי

— [to turn, pass; cmp. סור and חול,] to pass by; to pass away, v. next w.

עדה — Adah. The aliyah opens with her name: 'שם האחת עדה' (4:19). Rashi reads the name as a biography: she is the wife for procreation, 'על שם שמגונה עליו ומוסרת מאצלו' — named for being despised by him and withdrawing from him. HaKtav VeHaKabalah hears a different etymology — a nickname from Aramaic עדוי, pregnancy itself. But the same consonants travel far: Jastrow's עדה I is the assembly, the congregation — עדתישראל — and modern Hebrew turned it into the ethnic community: העדה התימנית, העדה המרוקאית. The arc: from a woman set apart and mournful, to the gathered people, to the community you belong to by origin. The name that marked separation became the word for belonging.

היה

Klein · היה

— to be, exist, happen, become.

Jastrow · הוי

— (b. h.) to exist; to be, become; to occur, come to pass.—With part. ה' מביט he looked; ה' אומר he said, freq. used to say. Gen. R. s. 1, beg. אני הייתי וכ' I was the implement &c.; Ib. ה' הקב"ה מביט וכ' the Lord looked

— frequent, usual. Sabb. VI, 6 דברו חכמים בה' the scholars (in using the words 'Arabian women') speak of the ordinary custom (not to the exclusion of other people); a. fr.

BDB · היה

— vb. fall out, come to pass, become, be (SI 1.6 היה, ib.3 הית; parallel form of הוה, Arabic , Aramaic הוא, ; v. הוה supr.)—

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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היה — to be. 'הוא היה אבי ישב אהל' (4:20): he was the father of tent-dwellers. Klein gives the spare gloss: to be, exist, happen, become. Jastrow adds the rabbinic frequentative — אומר הוה, 'he would say' — the verb as habit. The arc of the humblest verb: in Genesis it is the copula of becoming (ויהי); in Exodus it becomes the divine name itself, אהיה אשר אהיה; and in Aramaic, הוה in the af'el means 'to create.' Existence, habit, the Name, creation — four stations of one root, all present in the two words הוא היה.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr